IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA
FAMILY LAW DIVISION

IN RE: THE MARRIAGE OF:

SARAH S. HANSON,
Petitioner/Wife,

and

CHRISTOPHER A. HANSON,
Respondent/Husband.

Case No.: 24-DR-001150
Division: A

_____/

RESPONDENT/HUSBAND'S VERIFIED MOTION TO DISQUALIFY JUDGE MATTHEW FELIX AND REQUEST THAT NO FURTHER ACTION BE TAKEN UNTIL THIS MOTION IS DETERMINED

Respondent/Husband, Christopher A. Hanson, self-represented, moves under Fla. R. Gen. Prac. & Jud. Admin. 2.330 to disqualify Judge Matthew Felix, and states:

Record citations. "Doc." is the docket index number in this case. "Tr." is a transcript page and line. "App." is a page of Selected Cross Case Records and Correspondence, the indexed composite filed with Husband's Notice of Filing on October 7, 2026 (stamped App. 000001-000195). Exhibits are attached: Exhibit A, a record map of the April 4 video and the related records requests across the institutions involved; Exhibit B, a chart comparing each records request pleaded in the records case with Defendants' October 5, 2026 response; Exhibit C, Husband's record analysis of 31 documented deviations; and Exhibit D, the Parental Engagement Record Husband offered at the June 10, 2026 hearing. Every entry in Exhibits A, B, and C cites the record page it summarizes.

I. Summary

1. Since August 21, 2025, the Court Administrator, now a Defendant in Husband's public-records suit, *Hanson v. Thirteenth Judicial Circuit*, No. 25-CA-010255 (the "records case"), has withheld the video of the April 4, 2025 hearing in this case as "surveillance video footage from security cameras located on and within courthouse facilities." Aug. 21, 2025 Court Administrator letter at 2 (App. 28). Defendants have never identified a single fact tying the recording to security or surveillance.

2. Judge Felix is one of those Defendants, and the Attorney General's office represents him. On September 28, 2026, the outside judge presiding over the records case found good cause to release the video to Husband.

3. On October 9, 2026, Doc. 245, Husband's motion that hearings in this case be recorded on audio and video and the recordings made "available to the parties," is set before Judge Felix in his own courtroom. Ruling on it, Judge Felix decides the question his counsel litigates for him in the records case: whether hearing video in this case goes to Husband. Due process bars a judge from sitting where he has an interest in the outcome, and the test is objective: whether the circumstances create an unconstitutional potential for bias. *In re Murchison*, 349 U.S. 133, 136 (1955); *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868, 881 (2009).

II. The records case and the security label

4. **The records case.** Husband is the Plaintiff. The Defendants include the Thirteenth Judicial Circuit Court; its Trial Court Administrator (the "Court Administrator"); Chief Judge Christopher C. Sabella; Judge Kelly Ayers; and Judge Felix. Senior Assistant Attorney General Jessica Schwieterman represents those five. Filing No. 258524640 at 1, 5

(App. 6, 10). Judge Sherwood S. Coleman of the Sixth Judicial Circuit, assigned by the Chief Justice, presides.

5. **The duty.** Article I, section 24(a) of the Florida Constitution gives every person the right to inspect the records of the judicial branch. The custodian claiming an exemption bears the burden of proving it. See *Barfield v. Sch. Bd. of Manatee Cnty.*, 135 So. 3d 560 (Fla. 2d DCA 2014). That burden required Defendants to prove facts making a recording of a court hearing a security record.

6. **No fact.** They have never identified who classified the April 4 recording as security footage, when, which camera made it, or what that camera secures. Ms. Schwieterman told the records court that the video "is confidential, as it is surveillance video or it's security footage." Aug. 17, 2026 Tr. 15:12-14 (App. 24). She then said: "We didn't need to attach an affidavit, because the documents Mr. Hanson produced proved our point." Id. at 16:5-7 (App. 25).

7. **The September 28, 2026 orders.** Without deciding Husband's argument that no exemption was established, the records court found "that good cause exists under section 119.071(3)(a)3.d., Florida Statutes, for disclosure of the video to Plaintiff." Video Order (Sept. 28, 2026) at 1, ¶ 1 (App. 2). It ordered Defendants to invoice and arrange the exchange within ten days, by October 8, 2026. Id. The Court's August 27, 2026 order called the recording "the April 4, 2025, hearing-room video recording," denied sanctions without prejudice, and recorded Defendants' representation that, once good cause was found, they "would not interpose another exemption or objection and would provide Plaintiff the Video." App. 29-31. Defendants' September 2 filing used the same neutral term. App. 21. On October 7, 2026, the day before the deadline, Defendants' counsel emailed Husband invoices for "security/surveillance hearing

video" on a flash drive: $4.81 at the courthouse or $5.59 by mail. Defendants use the security label where no court reviews it.

8. A second order directed briefing on "whether a sworn statement attesting to confidentiality and exemption of records is required." Reconsideration Order (Sept. 28, 2026) at 2, ¶ 4 (App. 20). A third required a sworn certification "whether the list of withheld records in Defendants' Amended Response is complete as to every record responsive to Plaintiff's requests." Noncompliance Order (Sept. 28, 2026) at 1, ¶ 2 (App. 4).

9. **The October 5, 2026 certification.** Ms. Schwieterman filed for five Defendants a response with a certification sworn by Chief Deputy Court Administrator Richard T. Melendi. Filing No. 258524640 at 1 (App. 6); Melendi Cert. (App. 11-12). It omits the penalty-of-perjury language the order required. App. 4, 11-12. It supplies no fact for the security label. Its index of withheld records lists five emails and no video. Filing No. 258524640 at 4-5 (App. 9-10).

10. Mr. Melendi vouches for that index only "as to the records withheld in response to Plaintiff's records request dated August 14, 2025." Melendi Cert. ¶ 6 (App. 12).

11. **Apart from the August 14, 2025 request and the December 13 and January 9 categories, no request pleaded in the records case got a sworn statement that the withheld list is complete.**

(a) The one request whose withheld list Defendants swore to, August 14, 2025, is the one for which they list withheld records: five emails, each dated April 28, 2025, the day Judge Ayers was disqualified and Judge DePaul recused. Docs. 184, 187.

(b) Those five emails are the only records Defendants say they delivered to Judge Coleman's chambers for in-camera review, by FedEx on September 21, 2026.

Their proof of transmission lists no contents. Filing No. 258524640 at 4 (App. 9); Filing No. 258106808.

(c) For every other request, including the July 2025 request for the April 4 video, they certify no complete list.

(d) The video has stayed withheld more than thirteen months since the August 21, 2025 letter, and nearly twelve months since Husband filed the records case on October 14, 2025.

(e) Defendants decline to swear to completeness for those requests because responsive records exist that they have not identified.

12. Mr. Melendi certifies that the searches he requested were "performed by the Honorable Kelly Ayers and her judicial assistant." Melendi Cert. ¶ 3 (App. 11).

13. Those searches covered Judge Ayers's own records of two hearings. Melendi Cert. ¶ 4 (App. 11). She held the December 13, 2024 hearing over Husband's written objection that he could not attend. No. 25-CA-010255, DIN 10 at 34. When Wife's counsel wrote that he and Wife "do not plan on attending" the January 9, 2025 hearing, Husband answered: "I request that Mr. Davis and Ms. Hanson attend so that we can get that issue addressed." Doc. 104 at 23. Counsel stayed away from that hearing, a rehearing on the motion of Husband's own counsel to withdraw, and Judge Ayers told Husband: "I cannot discuss the case with you because Mr. Davis is not present." Doc. 109, Tr. 3:9-16, 17:21-22. Husband's request appears in the Circuit's production under an "Ayers,Kelly" header. No. 25-CA-010255, DIN 10 at 217-220. Ordered to state when and how those records were produced, Defendants said they were "available to Plaintiff on August 21, 2025," gave no date of production, and cited DIN 6, which does not contain them. Filing No. 258524640 at 3 (App. 8).

14. **No good-faith basis.** The security label has no good-faith factual basis. It is the position Judge Felix's counsel maintains for him.

III. Judge Ayers and the April 4 hearing

15. The April 4, 2025 hearing was an in-person evidentiary hearing before Judge Ayers. Doc. 198 at 1-3. Husband told her: "Your Honor, you have rolled your eyes at me at least three times." She answered: "I have not rolled my eyes, sir." Then: "You know what, sir. I will go get the camera footage and do it because I have not rolled my eyes at you." Id., Tr. 75:7-14.

16. At the close of the hearing Husband asked her to "request the video you referenced." She answered: "No, sir." Husband said: "I thought you said that you could." She answered: "Sir, you're crossing the line. This hearing is ended." Id. at 193:9-14. Judge Ayers called Husband's request for the very footage she had offered to get "crossing the line." Her offer to get the footage was never genuine.

17. On April 24, 2025, Husband moved to disqualify her, pleading that she rolled her eyes at him, denied it, offered "to check the tape," and then refused. Doc. 183 at 10, ¶¶ 76-77. On April 28, 2025, twenty-four days after the hearing, Judge Ayers granted that motion. Doc. 184. The video of that exchange has been withheld ever since.

18. The withholding protects the record of Judge Ayers's conduct at that hearing.

IV. Judge Felix's duty and his acts

19. Judge Felix has presided over this case since May 1, 2025, throughout the withholding. Doc. 188 at 2. The Code of Judicial Conduct required him to "dispose of all judicial matters promptly, efficiently, and fairly." Fla. Code Jud. Conduct, Canon 3B(8). The April 4 video bears on matters pending in this case (Docs. 280, 284) and is a public record.

20. Husband twice moved Judge Felix to review the April 4 video before the April 17, 2026 hearing. Docs. 280, 284. Both are noticed for October 9. Filing No. 256610901 ¶¶ 11, 13. At the April 17 hearing Husband asked: "Have you reviewed the video?" Judge Felix answered: "I have not." Apr. 17, 2026 Tr. 8:14-16.

21. On May 27, 2026, appearing here for the Court Administrator, Ms. Schwieterman moved to quash Husband's subpoena, telling this Court: "Rather than to even attempt to make a good cause showing to this Court why the security footage should be disclosed, Mr. Hanson chose to improperly issue this subpoena." Doc. 315 at 4. On June 3, 2026, Judge Felix granted that motion and released the custodian without findings. Doc. 326 at 1. Judge Felix made no good-cause determination; Judge Coleman made one on September 28.

22. **The effect.** Together, these acts kept the April 4 video out of this case and supported its concealment as a public record.

V. Decisions made while the Circuit held the video

23. On June 24, 2025, Judge Felix denied Husband's motion to transfer venue. Doc. 204. On Husband's appeal, No. 2D2025-1936, Husband twice moved to supplement the record with the April 4 video. The Second District denied the first motion in a one-sentence order stating no reasons (Nov. 26, 2025; Doc. 254) and denied his request for a written order (Jan. 27, 2026). It denied the second motion on April 6, 2026, three days after Husband filed it. Nine days later it affirmed in a one-word per curiam decision. Apr. 15, 2026 (Doc. 324).

24. On October 28, 2025, the Judicial Qualifications Commission closed Husband's complaint about Judge Ayers, No. 25-762. The complaint asked the Commission to obtain the April 4 footage. App. 135. The closing letter does not mention it and states that Husband's concerns "may be matters for review through the normal court process." App. 136.

25. Each ruled while the Circuit held the recording, and so did Judge Felix. He quashed Husband's subpoena to the custodian without findings (¶ 21; Doc. 326 at 1). Husband's motion for rehearing of that order (Doc. 332) and his two motions to review the video (¶ 20; Docs. 280, 284) remain undecided on the merits.

VI. Doc. 245 and Judge Felix's interest

26. Doc. 245, filed October 12, 2025, asks the Court to record the October 17, 2025 hearing "with both audio and video and make that available to the parties," and all future hearings the same way. Doc. 245 at 4. Judge Felix presided over the October 17 hearing and has entered no ruling on Doc. 245. Wife's July 30, 2026 notice sets it for October 9 and states: "A court reporter has not been reserved at this time." Doc. 361 at 2.

27. The Court Administrator, his co-defendant, keeps courtroom camera footage "30 days, then erase and reuse." It reports that footage of seven hearing dates in this case "had already been overwritten prior to the date of" Husband's July 13, 2026 request. July 30, 2026 Court Administrator letter at 1, encl. at 255 (App. 16, 18). It holds a preserved video of Judge Felix's July 7, 2026 proceeding and withholds it under the same security label. Id. at 2 (App. 17).

28. While Doc. 245 awaited a ruling, the camera footage of the October 17, 2025 hearing it asked to record was overwritten. App. 16.

29. Judge Felix must decide, as a neutral judge, whether hearings in this case are recorded and the recordings released to the parties, while as a represented Defendant he defends the withholding of a past hearing recording in this same case. His interest in that ruling became concrete on September 28, 2026: an outside judge found good cause to release hearing video in this case and set October 8 for Defendants to invoice and arrange the exchange, the day before

Doc. 245 is set before Judge Felix. On October 5 his counsel filed for him a sworn certification that leaves the label unsupported.

30. Husband fears he will not receive a fair hearing. Judge Felix cannot fairly decide Doc. 245, or any matter turning on the April 4 video, while his defense depends on that label.

VII. Prior motions and timeliness

31. Prior motions under rule 2.330(c)(4): to disqualify Judge Ayers, filed January 29, 2025 (Doc. 112), denied February 5, 2025 (Doc. 119); to disqualify Judge Ayers, filed April 24, 2025 (Doc. 183), granted April 28, 2025 (Doc. 184); to disqualify all Thirteenth Circuit judges, filed December 19, 2025 (Doc. 255), denied by Judge Felix January 8, 2026 (Doc. 258); a petition for writ of prohibition to the Second District, No. 2D2026-0279, filed February 2, 2026, denied without opinion February 10, 2026 (Doc. 270); and to disqualify Judge Felix, filed June 10, 2026 (Doc. 329), denied the same day (Doc. 331).

32. A ground resting on Judge Felix's interest in the result, rule 2.330(e)(2)(C), is an initial ground. *Brown v. St. George Island, Ltd.*, 561 So. 2d 253, 256 & n.5 (Fla. 1990). See also Fla. Code Jud. Conduct, Canon 3E(1)(c). That interest became concrete on September 28, 2026.

33. If rule 2.330(i) applies, Husband asks Judge Felix to make the finding it requires on the facts in paragraphs 1 through 14 and 26 through 30. Paragraphs 15 through 25 are background, and paragraphs 35 through 43 support the assignment request. The facts adjudicated in Docs. 258 and 331, including Doc. 329 ¶¶ 16-19, are preserved; the new ground is the September 28 and October 5, 2026 facts and their bearing on Doc. 245.

34. Husband received the September 28 orders on September 29, 2026, and the October 5 filing on October 5, 2026, and files this motion within 20 days of each. Rule 2.330(c)(2), (g).

VIII. The Circuit's structural conflict and the conduct it has produced

35. **The structure.** Every judge of this Circuit serves under Chief Judge Sabella, a Defendant in the records case. The Court Administrator, whose office holds this Circuit's hearing recordings, is a Defendant.

36. **The conduct.** Judge Ayers ran the searches behind the certification filed in her defense. Judge Felix had not reviewed the video when Husband asked, and released the custodian without findings. Judge Felix's August 4, 2026 order also directs that "[a]ny postings to social media about the case shall be immediately removed" and recites that the parents "authorize, Google, Avvo, Facebook, etc. to immediately remove the posts." Doc. 365 at 8, ¶ 19. That is a prior restraint on Husband's speech about this case, including speech about the conduct this motion describes, and it is under review in No. 2D2026-2213. U.S. Const. amend. I; Art. I, § 4, Fla. Const.

37. **The price of access.** In December 2025, after Husband narrowed two of his October 14, 2025 requests, the Court Administrator demanded advance deposits of $973.39 (Judge Felix), $236.02 (Judge Ayers), and $512.20 (Chief Judge Sabella) before reviewing any record. Doc. 255 at 55, 57, 59. Husband asked for a fee waiver or reduction and for inspection without charge. Id. at 69. No response granted either request.

38. The October 5 response mentions none of those requests, or Husband's September 4, 2025 request. The Circuit has a continuing interest in escaping accountability for the withholding and in keeping these records from him.

39. An institution that has concealed evidence directly relevant to several of a litigant's cases cannot give that litigant a fair process, and the risk that the conduct continues requires a judge from outside the Circuit.

40. **The law.** "A fair trial in a fair tribunal is a basic requirement of due process." *In re Murchison*, 349 U.S. 133, 136 (1955). "[N]o man can be a judge in his own case and no man is permitted to try cases where he has an interest in the outcome." Id. The test is objective: whether "the average judge in his position is 'likely' to be neutral, or whether there is an unconstitutional 'potential for bias.'" *Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868, 881 (2009).

41. Judge Felix is a represented Defendant in a suit over access to hearing video in this case, and Doc. 245 asks him to decide access to hearing video in this case.

42. The conduct in ¶¶ 19-22 supports the Circuit's defense of the records case, and it follows a pattern. Judge Ayers denied Husband's first motion to disqualify her (Docs. 112, 119) and granted the second only after the April 4 exchange (Docs. 183, 184). Judge Felix denied the next two (Docs. 255, 258, 329, 331). Judge Felix has advanced the guardian ad litem process into the children's lives while the financial discovery that drives Wife's guardian ad litem motion and Husband's defense remains without a written order: on February 3, 2026 he agreed to take that discovery "first" (Doc. 279, Tr. 18:14); he ruled on Doc. 22 from the bench on April 17, 2026 (Apr. 17, 2026 Tr. 114:10-13, 116:9-11) and entered no written order; and he granted the guardian ad litem motion and appointed the guardian between June 25 and August 4, 2026 (Docs. 337, 351, 365). At the June 10, 2026 hearing, Husband offered his Parental Engagement Record, 70 pages and 183 dated photographs of his daily parenting from November 2023 through June 7, 2026, and the Court turned to it. Exhibit D; June 10, 2026 Tr. 26:10-27:8, 59:12-19. Fifteen days later, the order granting the guardian ad litem motion reduced that record to what "Father stated": that "he is not a bad parent and in fact, is an excellent parent." Doc. 337 ¶ B. The order names no fact about the children's lives as they are.

43. A judge from outside the Thirteenth Circuit has none of these ties. The records case is already before such a judge, assigned by the Chief Justice (¶ 4). Due process requires a decisionmaker of that kind here. Husband disputes the outside judge's rulings as well (Exhibit C, entries 25 and 26). An outside assignment removes the structural interest every judge of this Circuit shares; disagreement on the merits remains for review.

IX. Assignment upon disqualification

44. Upon disqualification, Husband requests that this cause be referred to the Chief Judge, and that the Chief Judge, for the reasons in paragraphs 35 through 43, request the Chief Justice to assign a judge from outside the Thirteenth Judicial Circuit. See Art. V, § 2(b), Fla. Const.; Fla. R. Gen. Prac. & Jud. Admin. 2.205(a)(3)(A).

X. No further action until this motion is determined

45. Husband asks that no matter be heard, and no other action be taken, in this case until this motion is determined, including on October 9, 2026. He asks for that relief by order and in all other manners of relief that may be or become available under the law, so that the judge who hears Doc. 245 and the other noticed matters has settled authority to act. Rule 2.330(l) requires action on this motion immediately.

XI. Preservation

46. Husband raises each ground under the Due Process Clause of the Fourteenth Amendment and Article I, section 9 of the Florida Constitution, and preserves each for review by petition for writ of prohibition. Art. V, § 4(b)(3), Fla. Const.

47. Husband incorporates by reference, for context and to preserve them for review, his prior motions and the orders on them (¶ 31) and every record in the appendix, including Tabs 27-41 (App. 134-186). The ground for this motion remains the September 28 and October 5,

2026 facts. Exhibit C is Husband's record analysis of 31 documented deviations, each cited to the record and indexed at App. 126-132, and Husband is prepared to testify to it.

48. Husband reserves the right to supplement this motion as the records case produces the April 4 video and other records.

WHEREFORE, Husband requests that the Court: (A) disqualify Judge Felix and proceed no further or, if rule 2.330(i) applies, make the finding it requires and disqualify him, or alternatively recuse under rule 2.330(k); (B) upon disqualification, refer this cause to the Chief Judge, with Husband's request that the Chief Judge request the Chief Justice to assign a judge from outside the Thirteenth Judicial Circuit; (C) determine this motion immediately by signed written order, and take no other action in this case, on October 9, 2026 or at any other time, until this motion is determined; (D) if this motion is not denied within 30 days of service, direct the clerk to reassign the case under rule 2.330(l); and (E) grant such further relief as is just, in all other manners of relief that may be or become available under the law.

Respectfully submitted,

/s/ Christopher A. Hanson
Christopher A. Hanson, Esq.
Florida Bar No. 44094
Self-represented Respondent/Husband
[redacted]
Tampa, Florida [redacted]
Telephone: [redacted]
Email: christophhanson77@gmail.com

VERIFICATION

Under penalties of perjury, I declare that I have read the foregoing motion and that the facts stated in it are true. I first received the September 28, 2026 orders on September 29, 2026, and the October 5, 2026 filing on October 5, 2026. Paragraphs 3, 7, 11, 14, 16, 18, 22, 29, 30, 38, and 42 state inferences I draw from those facts. Rule 2.330(c)(3); § 92.525, Fla. Stat.

/s/ Christopher A. Hanson
Christopher A. Hanson
Date: October 7, 2026

CERTIFICATE OF GOOD FAITH

I certify that this motion and my statements in it are made in good faith. Rule 2.330(c)(5).

/s/ Christopher A. Hanson
Christopher A. Hanson, Fla. Bar No. 44094
Date: October 7, 2026

CERTIFICATE OF SERVICE

I certify that on October 7, 2026, I served this motion through the Florida Courts E-Filing Portal and by email on Petitioner/Wife, Sarah S. Hanson, Esq., self-represented, at sahanson@aainsco.com; on the Guardian ad Litem, Alexa A. Rodriguez, Esq., at alexa@aarfamilylaw.com; and on Judge Matthew Felix, promptly, under rule 2.330(d), through the Florida Courts E-Filing Portal.

/s/ Christopher A. Hanson
Christopher A. Hanson

EXHIBIT A: RECORD MAP

Record access: two recordings, the related records requests, and Doc. 22

Each mark is a dated record event; quoted words are verbatim from the cited record.

- Apr 4, 2025 hearing video: Sept. 28, 2026 good-cause order; exchange arrangements due within ten days (not delivery of the video).
- Jul 7, 2026 hearing recording: a separate recording, preserved and withheld as security footage; not addressed by the Sept. 28 video order.
- Other record event.

Oct 9, 2026 setting
Doc. 361: ten motions noticed (incl. Doc. 245)
Doc. 364 (contempt): only "time permitting" (Doc. 374)

Jul 2024 · Jan 2025 · Jul 2025 · Jan 2026 · Jul 2026

Trial court
Judges Ayers and Felix

Apr 4, 2025 hearing: "I will go get the camera footage"
... then, asked to request the video: "No, sir." (Doc. 198, Tr. 75, 193)

Jun 3, 2026: custodian's motion to quash granted, no grounds stated (Doc. 326);
Judge Felix is a Records Case defendant

Court administration
Thirteenth Circuit

Jul 24-25, 2025: requests ask for records
"in electronic format if available"

Nov-Dec 2025: advance deposits demanded (Doc. 255)

Jul 30, 2026: seven hearing recordings
(Apr 17, May 29, Jun 10, 2026; Jun 3, Oct 9, Oct 17, 2025; Feb 3, 2026) "had already been overwritten" (App. 16). The Jul 7, 2026 hearing recording "does exist" and "has been preserved"; withheld as security footage (App. 16-17)

Aug 21, 2025: "A video record does exist" (Apr 4, 2025 hearing); withheld as security footage.
Hearing-scheduling records: "Records do exist that satisfy this request."
Delivery: pay by check, then "pick up the records at the George Edgecomb Courthouse" (or $44.85 shipping) (Doc. 6, pp. 14-15).
Aug 22: DePaul recusal correspondence withheld, 4 pages (App. 14)

Aug 31: PDF "sent electronically" requested again;
Sep 8 reply addresses only the video

Attorney General
counsel for the Circuit and its judges

Sep 10 and 17, 2026: "four (4) pages withheld" (Records Case Doc. 98; App. 14)

Oct 5, 2026: response for defendants, including Judge Felix, answers the records-accounting order;
custodian certifies searches "generated records totaling 226 pages" (App. 6-12)

Oct 6, 2026: Husband's email to AG counsel (Husband's demand): April 4 exchange terms by Oct 7;
facts for the "security footage" label on the Jul 7 recording. Oct 7 reply: invoice for "security/surveillance hearing video", $4.81.

Aug 17, 2026 hearing: on a good-cause order the Circuit "would provide Plaintiff the Video"
(Doc. 95 at 2, Records Case)

May 26: "the only portion of Plaintiff's request that was
withheld was the security video" (Doc. 83), nine months after Aug 22

May 27: AG, for the records custodian, moves in this case to quash
a subpoena the motion says seeks "the video" (Doc. 315)

Oversight and review
JQC; Second DCA

Oct 28, 2025: JQC closes complaint;
letter does not mention the video

Nov 26, 2025: Second DCA keeps the
video out of the appellate record

Court outside the Circuit
Judge Coleman, by assignment

Sep 28, 2026: "good cause exists" for the Apr 4, 2025 video; defendants to "invoice and arrange"
the exchange within ten days (App. 2). A separate Sep 28 order requires a sworn custodian account of records "not produced, the reason they were withheld" (App. 4). Neither order finds that Judge Felix classified or withheld a recording.

The financial records
Doc. 22 and the contempt motion

Apr 17, 2026 (day 701): oral ruling, three years
of disclosure, objections preserved. Wife's counsel: "that's the Court ruling on Dock 22?" Court: "Correct." (Apr 17 Tr. 114:10-11, 115:3-12, 116:9-11)

Dec 30, 2024: Chase subpoenas "shall not be issued" (Doc. 93)

May 16, 2024: Doc. 22 filed

Jul 7, 2026 (day 782): "I need a written order on that."
(Jul 7 Tr. 10:10-11)

Oct 6, 2026 (day 873): no written order defining targeted production in the local docket reviewed through Doc. 378.

Aug 4, 2026: Wife's contempt motion (Doc. 364) asks to limit Husband to every other weekend (¶¶ 13, 15);
Aug 7 order sets it for Aug 27 (Doc. 366); Aug 21 order continues it to Oct 9, "time permitting" (Doc. 374).

Exhibit A to Respondent/Husband's Verified Motion to Disqualify, No. 24-DR-001150. App. cites are to the filed composite.

Eight records requests. The sworn index covers one.

Hanson v. Thirteenth Judicial Circuit, No. 25-CA-010255. Each request pleaded in the Amended Petition, against the September 28, 2026 orders and Defendants' October 5, 2026 response with the Melendi certification (Filing 258524640). Chart as of October 7, 2026.

DISPUTED claimed produced; no date or method shown **WITHHELD, NO FACT** exemption by label only **WITHHELD, BASIS STATED** rule cited **NOT ADDRESSED** Oct 5 filing silent No row is **PRODUCED** with a sworn date and method.

#	WHAT HUSBAND ASKED FOR	WHAT THE 9/28/26 ORDERS REQUIRED	WHAT THE 10/5/26 RESPONSE AND MELENDI SAY	STATUS
1	**Dec 13, 2024 hearing: scheduling and attendance** July 24, 2025 letter; Dec 1 to 20, 2024 (D6 pp.3-4) *"all emails and text messages and/or any other form of written communication, sent or received by Judge Kelly Ayers, her judicial assistant ..."*	Sworn statement whether records exist and why any were withheld (NC para 2). Produce, or state "when such records were produced and how such records were transmitted" (NC para 3).	"The search generated records totaling 226 pages" (Mel. para 4), the 2025 number. Searches "performed by the Honorable Kelly Ayers and her judicial assistant" (para 3). "available to Plaintiff on August 21, 2025"; "opted to pick up"; cites DIN 6, which does not hold them (Resp. p.3).	**DISPUTED** No date. No method.
2	**April 4, 2025 hearing video (Docket #198)** July 24, 2025 letter (D6 p.5) *"all visual and audio recordings from the following hearings ..."*	Good cause found. "ORDERED to invoice and arrange with Plaintiff the exchange ... within ten (10) days" (Vid. Ord. para 1). Due Oct 8, 2026.	Silent. The body never mentions the video, and it is absent from the index.	**WITHHELD, NO FACT** Release ordered; Oct 5 silent
3	**Seven other hearing recordings** Same letter: Oct 28, Dec 13, Dec 19, 2024; Jan 9, Jan 21, Feb 12, Apr 22, 2025 *2025 answer: "There are no records satisfying this request" (D6 p.14)*	Only the general completeness certification (NC para 2(iii)).	Not mentioned.	**NOT ADDRESSED**
4	**Jan 9, 2025 hearing: scheduling and attendance** July 25, 2025 letter; Dec 21, 2024 to Jan 20, 2025 (D6 p.7) *"... about scheduling and/or attendance at the hearing on January 9, 2025."*	Same as row 1 (NC paras 2, 3).	Same as row 1. Husband's 8/31/25 written objection that the set was incomplete and partly unreadable is never answered.	**DISPUTED** No date. No method.
5	**How the search was done; devices; PDF format** July 25 and Aug 14, 2025 letters; Aug 31, 2025 email *"Please provide details of the search process ... to confirm completeness."*	Certification "after reasonably inquiry" (NC para 2). New search DENIED (Recon. para 1).	First disclosure of who searched: Judge Ayers, a named defendant, and her assistant. No date, accounts, devices, or terms. No penalty-of-perjury language.	**NOT ADDRESSED** Method unstated after 437 days
6	**Judge DePaul recusal, April 28, 2025** Aug 14, 2025 letter; Apr 1 to May 31, 2025 (D6 p.9) *"... about the recusal, the decision to recuse, or the issuance of the Order of Recusal dated April 28, 2025."*	Complete index (NC para 4). Redaction of mixed records "is to be undertaken by the Court" (NC para 5).	Five emails, each "confidential under Fla. R. Jud. Admin. 2.420(c)(1)" (pp.4-5), "judicial immunity" until 9/10/26. Now "will be redacted and produced to Plaintiff via FedEx," no date. The only request Melendi certifies (para 6).	**WITHHELD, BASIS STATED** Whole for 409 days; self-redaction offered
7	**April 7 summary directive; motion to strike (Doc 177)** Sept 4, 2025 letter; Apr 1 to May 1, 2025 (D6 pp.11-12) *Asked for "a log detailing the withheld items"*	Only NC para 2(iii) and para 4.	Not mentioned. No custodian response located in the record.	**NOT ADDRESSED**
8	**Handling of Husband's letters to Chief Judge Sabella** Oct 14, 2025 letter (D11 pp.1-3) *2025 answer: "1,122 emails have been identified"; deposit first*	Only NC para 2(iii) and para 4.	Not mentioned.	**NOT ADDRESSED** Priced, never produced
9	**Communications involving Judge Felix** Oct 14, 2025 letter (D11 pp.4-5) *2025 answer: 768 emails; narrowed: "2,154 emails have been identified"*	Only NC para 2(iii) and para 4.	Not mentioned. Judge Felix is one of the Defendants filing it.	**NOT ADDRESSED** Priced, never produced
10	**Judge Ayers disqualification records and complaints** Oct 14, 2025 letter; Jan 1, 2020 forward (D11 pp.6-7) *2025 answer: "20,192 emails"; narrowed: "432 emails"*	Only NC para 2(iii) and para 4.	Not mentioned. Judge Ayers ran the searches Melendi certifies.	**NOT ADDRESSED** Priced, never produced

Sworn for one request only
The order asked about "every record responsive to Plaintiff's requests." Melendi certifies the index only for the August 14, 2025 request.

No date, no method
For Dec 13 and Jan 9: "available" and "opted to pick up," plus a DIN 6 cite that does not hold the records.

Video: silence
Exchange ordered within ten days, by Oct 8, 2026. The Oct 5 filing never mentions it.

DePaul emails
Withheld whole 409 days. Self-redaction now offered, bypassing the Court's in-camera role.

Four requests ignored
Sept 4, 2025, three Oct 14, 2025 requests, and the search-method question get no mention.

Sources: D6 = Doc 6 exhibits (requests and 2025 letters); D11 = Doc 11 (10/14/25 requests); NC = 9/28/26 Order on Notice of Noncompliance; Vid. Ord. = 9/28/26 video order; Recon. = 9/28/26 reconsideration order; Resp. and Mel. = Filing 258524640 (body pp.1-6, index pp.4-5, Ex. A pp.7-8). Quotes eye-verified; see RECORDS_CHART_LEDGER.md. Outside the 10255 pleading, so omitted here: the July 13, 2026 AV request (answered 7/30/26) and the October 2, 2026 native-file request (no response yet).

IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA
FAMILY LAW DIVISION

IN RE: THE MARRIAGE OF:

SARAH S. HANSON,
Petitioner/Wife,

and

CHRISTOPHER A. HANSON,
Respondent/Husband.

Case No.: 24-DR-001150
Division: A

EXHIBIT C

Husband's Record Analysis: 31 Documented Deviations

Exhibit C to Respondent/Husband's Verified Motion to Disqualify,
No. 24-DR-001150

Method

Husband prepared this analysis from the record. Each entry examines one decision point and is organized under five headings. **Deviation** states what the actor did, in the record's words. **Expected output** states what the governing duty required that actor to produce at that moment. **Verified facts and law** sets out the dated receipts, each quoted from and cited to the record. **Independent encounter** names each actor and the single record on which the entry stands, so that each entry can be checked by itself. **Lawful output** states the constitutional provision, rule, or statute that sets the duty, with the presumption or burden it places. Statements introduced by "Husband believes" are Husband's inferences from the cited facts. Every quotation from a record was checked word for word against an image of the source page, every quotation of a rule against its official text, and each check is logged.

Record citations follow the motion. "Doc." is the docket index number in this case, "at" the page of the docketed PDF. "Tr." is a transcript page and line. "App." is a page of the Selected Cross Case Records and Correspondence filed with the motion (App. 000001-000195). Records of other matters are cited by case number and filing.

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Counsel released on one day's notice

Deviation

Judge Ayers heard the expedited motion of Husband's lawyer to withdraw on one day's notice, twenty-four days before its January 6, 2025 setting, over Husband's written request for time and his written objection, and released the lawyer (Doc. 100 at 1, ¶ 1; Doc. 158, Tr. 17:9-12). On rehearing her order stated: "The Husband failed to establish a legal basis for the Court to deny the Expedited Motion to Withdraw" (Doc. 100 at 2, ¶ 3).

Expected output

Due process gives a client notice and a real chance to answer before his lawyer leaves. Counsel's own expedited motion said the December 3 motion "is scheduled for a zoom hearing on Monday, January 6, 2025" and that "There are no other hearings scheduled in the matter." (Doc. 58 at 1, ¶ 1; id. at 4, ¶ 14). Judge Ayers keeps the January date or states on the record what cannot wait.

Verified facts and law

- **Dec. 11-12, 2024:** Counsel filed the expedited motion at 4:09 PM on December 11 (Doc. 58 at 1). At 11:17 PM Husband asked chambers for "some more time to prepare for this hearing" and wrote: "I have never practiced in circuit or county Court in my life." (Doc. 167 at 1). At 9:09 AM on December 12 chambers wrote: "I will schedule the expedited hearing for 12/13/24 at 4:30 pm" (Doc. 168 at 1). Husband answered at 9:15 AM and again at 9:17 AM: "I object to the hearing occurring without me." (App. 137; Doc. 168 at 1).
- **Dec. 13, 2024, 4:30 PM:** Husband said he had e-filed "a formal objection today" (Doc. 158, Tr. 3:13-15). Judge Ayers said one filing appeared to be "correspondence between you and your attorney, which would be privileged. So I did not read it" (id., Tr. 3:21-24). Husband said he was "waiving any attorney-client privilege" (id., Tr. 4:19-20). She described "an open docket for January on Motion to Withdraw, which I just canceled because we're doing it right now." (id., Tr. 17:9-12). Husband asked: "is it fair to give me 24 hours' notice to try and prepare my argument for why it's more efficient to keep Ms. Hodz on?" She answered: "That's not the legal standard. It's not whether it's more efficient." (id., Tr. 17:13-17).
- **Jan. 9-13, 2025:** At the rehearing she said: "In an abundance of caution, I concurred with you that setting it in one day's notice might have been a little soon." (Doc. 109, Tr. 15:22-24). Then: "You have not given me any legal basis on why I should not allow them to withdraw." (id., Tr. 16:1-2). Her order recites that "the initial hearing was held on one-day notice" (Doc. 100 at 1, ¶ 1).

Independent encounter

Judge Kelly A. Ayers (the setting, the grant, the rehearing order). Vivian Cortes Hodz, Husband's counsel (the motion). One motion, one setting, one hearing. Each duty here arises from due process on this withdrawal motion alone.

Lawful output

Art. I, s. 9, Fla. Const., and the Fourteenth Amendment guarantee notice and a meaningful opportunity to be heard before a ruling that affects a party's rights. Rule 2.505(f)(1) permits withdrawal only by "A written order of the court after hearing on a motion setting forth reasons for withdrawal" and the client's contact information.

Unadjudicated agreements used to block discovery

Deviation

Judge Ayers said she was "not ruling on" the two marital agreements because "it's not in front of me," declared them "in full force and effect" in the same sentence, and used them to limit Husband's discovery requests and to block his Chase bank subpoenas (Doc. 90, Tr. 4:6-11; Doc. 93 at 1-2).

Expected output

Under *Casto v. Casto*, once the terms of the October 2023 separation agreement are shown unreasonable, the burden falls on the spouse defending it, and testing the terms takes the financial records. An order that declines to decide whether the agreements are valid cannot rest a discovery ruling on them. Wife's own petition says the October 2023 agreement "did not include financial disclosures." (Doc. 203 at 1, ¶ 5).

Verified facts and law

- **Dec. 19, 2024:** Judge Ayers: "So at this juncture I'm not ruling on them with respect to anything because it's not in front of me, but as far as I'm concerned they're both in full force and effect and that would limit your discovery requests, Mr. Hanson." (Doc. 90, Tr. 4:6-11). Then: "I've sustained it actually. So that discovery is not going to be produced." (id., Tr. 6:1-2). And: "So it stays in full force and effect unless you file something otherwise." (id., Tr. 7:21-23).
- **Dec. 30, 2024:** The written order, which chambers directed Wife's counsel to prepare (Doc. 91 at 14), sustained Wife's objection "as the Parties entered into the Premarital Agreement and the Marital Separation Agreement" and ordered that the subpoenas to JP Morgan Chase Bank and Chase Bank "shall not be issued." Paragraph 3: "At this juncture, the Court is not issuing a ruling with respect to the validity of either agreement, as that issue has not been challenged by either Party or properly brought before the Court." (Doc. 93 at 1-2).
- **Feb. 28, 2025 to July 22, 2026:** Husband filed his motion to void the October 8, 2023 post-marital agreement and to allow the Chase subpoenas (Doc. 146 at 1). On April 22, 2025 Judge Ayers described her ruling: "the only substantive ruling that I've made is you can't get your discovery because we've got the two agreements." (Doc. 192, Tr. 29:7-9). On July 22, 2026, 509 days after filing, Husband listed Doc. 146 as still pending without a ruling (Doc. 346 at 10).

Independent encounter

Judge Kelly A. Ayers (the bench ruling, the Dec. 30 order, the April 22 description). Scott Davis, Wife's counsel (prepared the order). One objection, one ruling, one order. Each duty here arises from *Casto* and due process on this objection alone.

Lawful output

Art. I, ss. 9 and 21, Fla. Const., guarantee due process and courts open to every claim. Under *Casto v. Casto*, 508 So. 2d 330 (Fla. 1987), when the terms of a marital separation agreement such as the October 2023 agreement are unreasonable for one spouse, a presumption of concealment or lack of knowledge arises, and the burden shifts to the spouse defending it.

Guardian retainer with no ability-to-pay finding

Deviation

Judge Felix ordered Husband to pay half of a $6,000 guardian ad litem retainer within three days, at $325 an hour, while Husband's written opposition to the guardian's cost and risk had sat 478 days with no ruling that addressed it, and no order found what either parent can pay (Doc. 169 at 1; Doc. 351 at 4; Doc. 365 at 7).

Expected output

Section 61.16(1) directs the court to consider each parent's financial resources before it imposes a cost. Judge Felix had a timely written opposition, filed against the very motion and raised aloud before him. He rules on it, takes evidence of cost, and weighs each parent's ability to pay before he sets a three-day deadline.

Verified facts and law

- **Apr. 1, 2025:** Husband filed Doc. 169 "in opposition of Wife's motion to appoint guardian ad litem," attaching a family-law magazine article warning that a party "will have spent thousands of dollars on an investigation and report that could cost them custody of their beloved child." (Doc. 169 at 1-2).
- **May 29, 2026:** Husband asked Wife about Docket 169. Wife's counsel objected on relevance. Judge Felix: "I agree. I think the question, however, is did she review that docket entry." (May 29, 2026 Tr. 38:6-17). Husband's next question, about risks to the children, drew "Objection. Speculation." and "Sustained." (id., Tr. 39:4-9). On the one after: "I understand that's your position, and you can make that argument in closing." (id., Tr. 39:21-23).
- **June 25 to Aug. 4, 2026:** The order granting the guardian motion makes no cost finding; its one cost sentence: "The cost of the guardian ad litem shall be divided equally between the parties, without prejudice subject to a potential letter [sic] reallocation." (Doc. 337 at 1). The July 23 order and the Aug. 4 amended order require "six thousand dollars ($6,000.00) within 3 days of entry of this Order" at "$325.00 per hour." (Doc. 351 at 4, ¶ 16; Doc. 365 at 7, ¶ 16). None of the three mentions Doc. 169 or finds what either parent can pay (Doc. 337 at 1-2; Doc. 365 at 1-9).

Independent encounter

Judge Matthew Felix (sustained the objections; signed the three orders). Scott Davis, Wife's counsel (the relevance and speculation objections). One written opposition, one hearing, three orders. Each duty here arises from section 61.16(1) and the opposition on this docket alone.

Lawful output

Art. I, s. 9, Fla. Const., guarantees a meaningful opportunity to be heard. Section 61.16(1), Fla. Stat., permits the court to order costs only after considering the financial resources of both parties. None of the three orders cites evidence of the guardian's cost or of either parent's ability to pay.

Courtroom footage offered, refused, then withheld

Deviation

Judge Ayers offered the courtroom camera footage as proof she had not rolled her eyes at Husband, then refused to get it (Doc. 198, Tr. 75:12-14, 193:9-14). When Husband requested that video as a public record, the circuit withheld it as security footage and has never supported that label with a single fact (App. 28; App. 25). It still held the video 403 days later, when a judge from outside the circuit found good cause to release it (App. 2).

Expected output

Art. I, s. 24(a) makes the recording of a court hearing a public record, presumed open. Asked for it in writing on July 25, 2025 (App. 28), the custodian produces it, or names a specific exemption and proves with facts that the exemption covers this recording. A judge who offers footage as proof of her own conduct has made it evidence: she gets it and preserves it. That conduct became a sworn ground for her disqualification, which she granted (Doc. 183 at 10, ¶¶ 76-77; Doc. 184).

Verified facts and law

- **Apr. 4, 2025:** Judge Ayers, disputing Husband's statement that she rolled her eyes at him: "I will go get the camera footage and do it because I have not rolled my eyes at you." (Doc. 198, Tr. 75:12-14). At the close Husband asked: "Your Honor, I would ask that you request the video you referenced." She answered: "No, sir." Then: "Sir, you're crossing the line. This hearing is ended." (id., Tr. 193:9-14).
- **Aug. 21, 2025:** Court Administrator Gina Justice, in a letter copied to Judge Ayers, wrote that "A video record does exist" of the April 4 hearing and withheld it as "surveillance video footage from security cameras located on and within courthouse facilities" (App. 28; No. 25-CA-010255, DIN 6 at 15).
- **Apr. 17 to Sept. 2, 2026:** Her successor, Judge Felix, asked "Have you reviewed the video?", answered: "I have not." (Apr. 17, 2026 Tr. 8:14-16). In Husband's records suit, asked to admit that no documented analysis weighed the public interest before the denial, the circuit answered on May 15, 2026: "Admit. No analysis was needed as the video is confidential pursuant to Florida Rule of General Practice and Judicial Administration 2.420(c)(8); Florida Statutes §119.071(3)(a); and Op Att'y Gen. Fla. 2015-06 (2015)." (No. 25-CA-010255, Filing No. 256559091 at 21). Its counsel told the court: "We didn't need to attach an affidavit, because the documents Mr. Hanson produced proved our point." (Aug. 17, 2026 Tr. 16:5-7 (App. 25)). On Sept. 2 Defendants' response called it "the April 4, 2025 hearing-room video recording" (App. 21).
- **Sept. 28, 2026:** The outside judge found "that good cause exists under section 119.071(3)(a)3.d., Florida Statutes, for disclosure of the video to Plaintiff," 403 days after the withholding letter, and ordered the exchange arranged within ten days (App. 2, ¶ 1).

Independent encounter

Judge Kelly A. Ayers (offered the footage, refused it, copied on the withholding letter). Court Administrator Gina Justice (withheld it). Judge Matthew Felix ("I have not."). One hearing, one offer, one refusal, one records request. Each duty here arises from what Judge Ayers said in her own courtroom and from one written denial on this record alone.

Lawful output

Art. I, s. 24(a), Fla. Const., presumes every judicial-branch record open, and the custodian claiming an exemption bears the burden of proving it. Rule 2.420(m)(2): "If the request is denied, the custodian must state in writing the basis for the denial."

Motions left undecided after a promised hearing

Deviation

Judge Felix ordered that Husband's recording motions and the sanctions motion embedded in them "will be addressed on October 17, 2025 at 12:00 p.m." (Doc. 247 at 2). No order followed. Asked to rule on them and on Husband's separate sanctions motion, he checked "not an emergency" ninety-eight minutes later and left every route to a ruling blank (Doc. 250 at 1, 4; Doc. 251 at 2). Neither motion has been decided; both are noticed for Oct. 9, 2026 (Doc. 361 at 1-2).

Expected output

Rule 2.215(g)(1) requires every judge to enter an order within a reasonable time on every matter submitted. Told that the motions his order said would be addressed on October 17 still had no order, Judge Felix rules, sets a hearing, or states why not. His own form offered each route.

Verified facts and law

- **Oct. 14, 2025:** Judge Felix's handling order checked "Other": the Doc. 245 motions for public access, recording and Zoom broadcast, with the embedded emergency sanctions motion, "will be addressed on October 17, 2025 at 12:00 p.m." (Doc. 247 at 2).
- **Oct. 24, 2025, 7:14 AM to 8:52 AM:** Husband moved for orders on Docs. 239 and 245: "Despite recently purporting to 'address' these matters at the 10-17-25, no order was issued." (Doc. 250 at 1, 4, ¶ 23). Ninety-eight minutes later the form came back with one box checked: "The matter is not an emergency and should be handled in the normal course." Left blank: "A hearing will be held by Family Law Division Judge"; "The matter is time sensitive and an expedited hearing is warranted"; "The matter is legally insufficient on its face and is denied." (Doc. 251 at 2).
- **Apr. 17 to Oct. 9, 2026:** Wife's amended notice set both motions for April 17, 2026, as scheduled at the Feb. 3, 2026 case management conference, 175 days after the checkbox order (Doc. 276 at 1-2). Neither was decided there. Both now sit among ten matters noticed for Oct. 9, 2026 (Doc. 361 at 1-2).

Independent encounter

Judge Matthew Felix (the Oct. 14 handling order; the Oct. 24 checkbox order). One motion, one form, one morning. Each duty here arises from Rule 2.215(g)(1) and the court's own Oct. 14 order on this record alone.

Lawful output

Art. I, s. 21, Fla. Const.: "justice shall be administered without sale, denial or delay." Rule 2.215(g)(1): "Every judge has a duty to enter within a reasonable time an order or judgment on every matter submitted to that judge." A label on the motion leaves both matters submitted and undecided.

Entry 6 of 31 · N-073 · Trial court, Judge Felix, Feb. 3, 2026

Hearing on a pending motion left to opposing counsel's consent

Deviation

Asked to set Husband's twenty-month-old motion for Wife's financial records for its own hearing, Judge Felix put the question to Wife's lawyer, accepted "No, sir, I do not," and, when Husband said the court could order it, answered: "But I want his consent" (Doc. 279, Tr. 14:12-17, 21:5-8).

Expected output

Art. I, s. 21 requires that justice be administered "without sale, denial or delay." A trial judge sets his own calendar, and opposing counsel's consent is no part of that authority. Holding a motion pending since May 16, 2024 (Doc. 355 at 1), Judge Felix sets the hearing himself or gives a reason that rests on the court's calendar rather than on opposing counsel's consent.

Verified facts and law

- **May 16, 2024:** Husband filed the motion at Doc. 22, which Wife's own notice lists as the "Motion to Compel Evidence of Marital Assets and Financial Information" (Doc. 276 at 1; Doc. 355 at 1).
- **Feb. 3, 2026:** Husband asked whether the court was "refusing me an opportunity to address the discovery issues at a hearing before that?" (Doc. 279, Tr. 14:7-9). Judge Felix: "Mr. Davis, would you agree to setting that matter individually before?" Davis: "No, sir, I do not, respectfully." Pressed for "Yes or no?": "No, sir, I do not." (id., Tr. 14:12-17). Later the court: "I have an hour. I've asked opposing counsel if he would agree to do that separately." Husband: "You can force him to do it." The court: "But I want his consent" and "I prefer to coordinate between the parties and the counsels with regards to hearings and Mr. Davis has not agreed to that." (id., Tr. 21:5-14).
- **Feb. 3 to Apr. 17, 2026:** Everything went to April 17, seventy-three days later, with the promise "We'll do that first." (id., Tr. 18:14). Doc. 22 was taken up first (Apr. 17, 2026 Tr. 61:7-21). The court ordered three years of mandatory disclosure from the bench and has entered no written order (id., Tr. 114:10-13, 116:9-11).

Independent encounter

Judge Matthew Felix (asked for consent; set the motion with everything else for April 17). Scott Davis, Wife's counsel (refused twice). One motion, one request, one transcript. Each duty here arises from the court's own control of its calendar on this record alone.

Lawful output

Art. I, s. 21, Fla. Const.: the courts are open, and "justice shall be administered without sale, denial or delay." Rule 2.215(g)(1) gives every judge the duty to enter an order within a reasonable time on every matter submitted. A trial court controls its calendar under Fla. Fam. L. R. P. 12.200 and its inherent authority; neither depends on a party's consent.

Entry 7 of 31 · N-090 · Trial court, Judge Felix, Apr. 17, 2026

Bench ruling on Doc. 22, no written order

Deviation

On a motion pending twenty-three months, Judge Felix ordered three years of mandatory disclosure from the bench. Asked by Wife's lawyer, "And that's the Court ruling on Dock 22?", he answered: "Correct." He has entered no written order (Apr. 17, 2026 Tr. 114:10-13, 116:9-11).

Expected output

Having ordered disclosure from the bench on a motion filed May 16, 2024 (Doc. 355 at 1), and confirmed it was "the Court ruling on Dock 22," Judge Felix enters a written order with the 30-day period discussed on the record and sets any objection for the hearing he promised (Apr. 17, 2026 Tr. 115:3-6, 116:25-117:2).

Verified facts and law

- **Apr. 17, 2026:** "So I'm going to order three years of mandatory disclosure going back three years from the date of the filing initial petition on January 26th 2024." (Apr. 17, 2026 Tr. 114:10-13). Then: "I'm not going to preclude any objections to that. You can make your objections and we'll set that for a hearing specifically." (id., Tr. 115:3-6). And: "I didn't order this discovery and say you have to produce -- you don't -- I'm not precluding any right to make an objection, all right, and then we'll have to deal with that specifically." (id., Tr. 115:8-12). Husband: "they're not going to produce anything. They're going to kick the can down the -- further down the road" (id., Tr. 116:14-17). The court: "I appreciate your concern. Noted. We'll cross those bridges when we get there. 30 days?" (id., Tr. 116:23-25). Wife's counsel: "30 days if that's what the Court is ordering." (id., Tr. 117:1-2).
- **Apr. 17, 2026, later that day:** Husband: "Well, the document 22 brings up that." The court: "We already handled that matter." (id., Tr. 344:1-4).
- **July 22-29, 2026:** Husband moved for entry of a written order on Doc. 22 and filed a Rule 2.215 notice that it remained pending (Doc. 346 at 1; Doc. 355 at 1). No written order on Doc. 22 has been entered.

Independent encounter

Judge Matthew Felix (the bench ruling; no written order). Scott Davis, Wife's counsel ("I understand the Court's ruling."). One motion, one hearing, one ruling never written. Each duty here arises from the court's own oral order and due process on this record alone.

Lawful output

Art. I, ss. 9 and 21, Fla. Const., guarantee due process and justice without delay. Rule 2.215(g)(1): "Every judge has a duty to enter within a reasonable time an order or judgment on every matter submitted to that judge."

Entry 8 of 31 · N-118 · Trial court, Judge Felix, June 10, 2026

Defendant judge denies his own disqualification in hours

Deviation

Judge Felix, a named defendant in Husband's pending records suit, denied the motion to disqualify him from Husband's family case 9 hours and 27 minutes after it was filed, in an order that never mentions he is a defendant (No. 25-CA-010255, DIN 12 at 1; Doc. 329 at 1; Doc. 331 at 1-2).

Expected output

Art. I, s. 9 guarantees an impartial judge. Rule 2.330(e)(2)(C) makes it a ground for disqualification that the judge "has more than a de minimis interest that could be substantially affected by the proceeding," a ground separate from bias. Judge Felix rules on that ground, in writing, and makes the findings asked for. He knew the question: asked on May 29, 2026 whether he knew he was a defendant, he answered "I may be." (May 29, 2026 Tr. 46:10-17).

Verified facts and law

- **Nov. 13, 2025:** Husband's amended petition in No. 25-CA-010255 names Judge Felix as a defendant (No. 25-CA-010255, DIN 12 at 1).
- **Jan. 8 and Apr. 17, 2026:** Judge Felix denied Husband's earlier motion to disqualify all Thirteenth Circuit judges under rule 2.330(i), finding "that he can be fair and impartial in this case," with no mention of his status as a defendant (Doc. 258 at 1). On April 17 Husband asked for "some findings of facts as to whether the Court agrees there's a structural conflict" (Apr. 17, 2026 Tr. 42:18-20). The court ruled that the structural argument was "addressed" in Doc. 258 and denied the request (id., Tr. 50:4-14). Pressed again later for findings, Judge Felix said: "I can make the ruling without findings of facts, and if the Second DCA says I need to find facts, then I'll do so." (id., Tr. 181:5-8).
- **June 10, 2026, 12:00 AM to 9:27 AM:** Doc. 329 pled the interest ground, rule 2.330(e)(2)(C), and asked for findings (Doc. 329 at 1, 3, 5). Doc. 331 denied it under rule 2.330(i): the judge "can be fair and impartial in this case" and the motion "is legally insufficient as a matter of law." The two-page order never mentions the records suit (Doc. 331 at 1-2).

Independent encounter

Judge Matthew Felix, presiding here and a named defendant in No. 25-CA-010255, ruled on his own disqualification the morning it was filed. One motion, one order, one morning. Each duty here arises from the Constitution and rule 2.330 on this record alone.

Lawful output

Art. I, s. 9, Fla. Const., and the Fourteenth Amendment: "[N]o man can be a judge in his own case" (*In re Murchison*, 349 U.S. 133, 136 (1955)). The test is objective: whether "the average judge in his position is 'likely' to be neutral, or whether there is an unconstitutional 'potential for bias.'" (*Caperton v. A.T. Massey Coal Co.*, 556 U.S. 868, 881 (2009)). Husband maintains that the interest ground, rule 2.330(e)(2)(C), is an initial ground (*Brown v. St. George Island, Ltd.*, 561 So. 2d 253, 256 & n.5 (Fla. 1990)).

Social-media removal order no motion requested

Deviation

Judge Felix ordered that "Any postings to social media about the case shall be immediately removed" (Doc. 365 at 8, ¶ 19). Wife's guardian motion did not ask for it (Doc. 69 at 3). The order makes no finding about speech (Doc. 365 at 1). That sentence first appears in the record in the Aug. 4, 2026 Amended Order; the July 23 order as entered is five pages, the odd pages of the nine-page order, and carries only the last lines of that paragraph (Doc. 351 at 1-5; Doc. 365 at 8-9).

Expected output

A restraint on a parent's speech about his own case is presumptively invalid (*Romero*). It issues only on a request, after a hearing, with findings of a compelling interest served by the least restrictive means. The order is entered complete on entry. Here the missing terms surfaced twelve days later, after the guardian reported missing pages (App. 113).

Verified facts and law

- **Dec. 13, 2024:** Wife's guardian motion asked for an appointment, for Husband to pay the cost, and for "any other relief that the Court finds to be necessary or appropriate in this matter." It says nothing about social media (Doc. 69 at 1-3).
- **July 23, 2026:** The order appointing the guardian was entered as five pages: pages 1, 3, 5, 7 and 9 of the nine-page order (Doc. 351 at 1-5; Doc. 365 at 1-9).
- **Aug. 3-4, 2026:** The guardian wrote that "several of the pages of the Order are missing" and asked that a complete copy be entered (App. 113). On Aug. 4 Judge Felix entered the nine-page Amended Order. Its even pages, absent from Doc. 351, carry a hearsay waiver (¶ 14), a waiver of "any and all claims" against the guardian (¶ 18), and the social-media sentence (¶ 19) (Doc. 365 at 6, 8). The order's one finding is that a guardian is in the children's best interest (Doc. 365 at 1).
- **Aug. 4-21, 2026:** At 9:49 AM on Aug. 4 Wife moved for contempt of the July 23 order, stating that "an appropriate sanction is to modify the children's current schedule to permit Respondent visitation only every other weekend" (Doc. 364 at 3, ¶ 13). On Aug. 7, three days after filing, Judge Felix set it for an Aug. 27 hearing (Doc. 366 at 1). On Husband's motion it was reset to Oct. 9, 2026, time permitting (Doc. 374 at 1). On Aug. 21, 2026, 827 days after Husband filed Doc. 22 and 126 days after the bench ruling on it, Doc. 22 still had no written order (Doc. 355 at 1; Apr. 17, 2026 Tr. 114:10-13).

Independent encounter

Judge Matthew Felix (the Amended Order; the setting). The guardian ad litem (the letter). Wife (the contempt motion). One order, one docket. Each duty here arises from the speech and due process clauses of the Florida Constitution on this order alone.

Lawful output

Art. I, s. 4, Fla. Const., and the First Amendment: limitations on protected speech "must be considered presumptively invalid and may be justified only if the purpose that is intended to be accomplished is a compelling state interest and does so by the least restrictive means" (*Romero v. Erik G. Abrahamson, P.A.*, 113 So. 3d 870, 872 (Fla. 2d DCA 2012)). Restrictions on social-media speech "imposed sua sponte ... and adopted thereafter by the trial court without a hearing" were quashed where "[n]either party moved for the imposition of such restrictions" (*Delgado v. Miller*, 314 So. 3d 515, 518-19 (Fla. 3d DCA 2020)).

Entry 10 of 31 · N-025 · Chief Judge Sabella and Court Administration (General Counsel Katchuk), Jan. 22 to Mar. 13, 2025

Three notices to the chief judge, one referral back

Deviation

Husband wrote to Chief Judge Christopher C. Sabella about this case on Jan. 22, Feb. 12 and Mar. 11, 2025. The answer came from Christian N. Katchuk, General Counsel of the Administrative Office of the Courts: "the chief judge does not possess any independent investigative powers," "Judge Sabella is unable to take any action on your behalf in this matter," and Husband's concerns "should be addressed by filing an appropriate motion in the case with the Clerk of the Circuit Court or through the utilization of the appellate court process." (Doc. 154 at 1.) That sent Husband back to the judge his letters reported, or to an appeal.

Expected output

Rule 2.215(b)(2) gives the chief judge "administrative supervision over all judges and court personnel within the judicial circuit." Under Rule 2.215(b)(7) the chief judge "must ... regularly examine the dockets of the courts under the chief judge's administrative supervision, and require a report on the status of the matters on the dockets." Three notices on one case called for that step: examine this docket, require the status report, and tell Husband what was done. That duty needs no investigative power and decides no motion.

Verified facts and law

- **Feb. 12, 2025:** Husband's letter, filed in this case that morning, reported that the court entered an order on his motion "barely a day before the hearing," "depriving me of the right to even create a record," and said: "I'm now turning back to you for help, Judge Sabella." (Doc. 120 at 1-2.)
- **Mar. 13, 2025:** Mr. Katchuk answered all three emails in one letter, copied to Chief Judge Sabella and the court file (Doc. 154 at 1).
- **Oct. 14 to Dec. 18, 2025:** Husband requested the records of how the chief judge's office handled his correspondence on this case. The answer: "1,122 emails have been identified that may be responsive," and the office "must first receive a deposit of $512.20" before reviewing them (Doc. 255 at 54-55).

Independent encounter

Chief Judge Christopher C. Sabella (received all three emails; copied on the answer). Christian N. Katchuk, General Counsel (the Mar. 13, 2025 letter). Three notices, one answer, one docket. Each duty here arises from Article V, section 2(d) and Rule 2.215 on this record alone.

Lawful output

Art. V, s. 2(d), Fla. Const.: "The chief judge shall be responsible for the administrative supervision of the circuit courts and county courts in his circuit." Rule 2.215(b)(7): the chief judge "may take action as necessary to make the dockets current."

Entry 11 of 31 · N-053 · Court Administration (Court Administrator Justice; counsel for the Circuit), July 24, 2025 to Oct. 5, 2026

Video withheld; missing-records notice first answered under court order

Deviation

Court administration confirmed in writing that "A video record does exist" of the April 4, 2025 hearing and withheld it as "surveillance video footage from security cameras" without stating a fact that makes it one. It wrote that the scheduling records "do exist." (App. 28.) Its only letter after Husband's Aug. 31, 2025 written notice that records were missing addressed the video alone (No. 25-CA-010255, DIN 6 at 23, 44). The first answer on those records came on Oct. 5, 2026, under court order (App. 4, 11-12).

Expected output

A custodian invoking a security-system exemption for a recording of a court hearing states the fact that puts it inside: what system made it. A custodian that writes "Records do exist," asks for payment, and is then told in writing that records are missing says what was produced and what was held back.

Verified facts and law

- **Aug. 21, 2025 to Sept. 2, 2026:** asked in writing three times whether there are "separate recording systems for hearings versus security" (DIN 6 at 21, 68), the office replied once, Sept. 8: "the court's position to your follow-up request has not changed." (DIN 6 at 44.) On May 15, 2026 the Circuit admitted that no documented analysis weighed the public interest before the denial (Filing No. 256559091 at 21). Judge Coleman's Aug. 27, 2026 order called it "the April 4, 2025, hearing-room video recording" (App. 29), and on Sept. 2, 2026 the Circuit's counsel used the same words (App. 21).
- **Aug. 31, 2025 to Oct. 5, 2026:** Husband: "It's concerning that these documents were not produced in the initial response." (DIN 6 at 23.) The Sept. 8 letter answered only about the video (DIN 6 at 44). Counsel, May 26, 2026: "the only portion of Plaintiff's request that was withheld was the security video" (DIN 83 at 7). On Sept. 28, 2026, 393 days after Husband's notice, Judge Sherwood Coleman ordered a certification "sworn under penalty of perjury" on whether the Dec. 13, 2024 and Jan. 9, 2025 scheduling records exist and, if not produced, "the reason they were withheld" (App. 4). The Oct. 5 certification states those records "have been provided to Plaintiff" and omits the penalty-of-perjury language (App. 11-12).

Independent encounter

Gina Justice, Court Administrator (2025 letters). Mike Moore, Public Information Officer (acknowledgments). Jessica Schwieterman, Senior Assistant Attorney General, counsel for the Circuit defendants. Judge Sherwood Coleman, from outside the circuit (Sept. 28, 2026 order). Richard T. Melendi, Chief Deputy Court Administrator (Oct. 5, 2026 certification). Four requests, one office, one file. Each duty here arises from Article I, section 24 and Rule 2.420 on this record alone.

Lawful output

Art. I, s. 24(a), Fla. Const. presumes judicial-branch records open and puts the burden of every exemption on the custodian. Rule 2.420(m)(2): "If the request is denied, the custodian must state in writing the basis for the denial." Section 119.071(3)(a), through Rule 2.420(c)(8), is a security-system exemption; whether this recording belongs to such a system is the custodian's fact to state and prove.

Three questions about the recording system, one repeated exemption

Deviation

Husband asked in writing on Aug. 31, Sept. 9 and Sept. 12, 2025 whether separate systems record hearings and security (No. 25-CA-010255, DIN 6 at 21, 68). Court Administrator Gina Justice's only reply, her Sept. 8 letter, repeated her Aug. 21 exemption language word for word and answered none of his questions (DIN 6 at 44; App. 28). Judge Coleman's Aug. 27, 2026 order called it "the April 4, 2025, hearing-room video recording" (App. 29), and the Circuit's counsel adopted those words (App. 21). The Circuit has never identified a single fact tying the recording to security or surveillance.

Expected output

Art. I, s. 24(a) puts the burden on the custodian, and Rule 2.420(m)(2) requires the basis for a denial in writing. The exemption invoked, s. 119.071(3)(a) through Rule 2.420(c)(8), covers security-system records, so the basis is a fact: which system made this recording. Ms. Justice had to name that system.

Verified facts and law

- **Aug. 21, 2025:** "A video record does exist" for the April 4, 2025 hearing, withheld as "surveillance video footage from security cameras located on and within courthouse facilities." For the seven other hearings requested: "There are no records satisfying this request." (App. 28.)
- **Aug. 31 to Sept. 12, 2025:** Husband asked: "Are there separate recording systems - for hearings vs. for security?" (DIN 6 at 68.) The Sept. 8 letter restated the Aug. 21 exemption sentences verbatim and closed: "Accordingly, the court's position to your follow-up request has not changed." (DIN 6 at 44.) He asked again on Sept. 9 and Sept. 12 (DIN 6 at 21, 68).
- **May 15 to Sept. 28, 2026:** asked to admit that no documented analysis weighed the public interest, counsel answered: "Admit. No analysis was needed as the video is confidential pursuant to Florida Rule of General Practice and Judicial Administration 2.420(c)(8); Florida Statutes §119.071(3)(a); and Op Att'y Gen. Fla. 2015-06 (2015)." (Filing No. 256559091 at 21.) On Aug. 17, 2026 counsel told the court: "We didn't need to attach an affidavit, because the documents Mr. Hanson produced proved our point." (App. 25, Tr. 16:5-7.) On Sept. 28, 2026 Judge Coleman found good cause and ordered Defendants "to invoice and arrange with Plaintiff the exchange for the April 4, 2025 hearing video" (App. 2).

Independent encounter

Gina Justice, Court Administrator (the Aug. 21 and Sept. 8, 2025 letters). Jessica Schwieterman, Senior Assistant Attorney General, counsel for the Circuit (admissions, hearing, Sept. 2, 2026 filing). One recording, one exemption, one set of written questions. Each duty here arises from Article I, section 24 and Rule 2.420 on this request alone.

Lawful output

"The governmental agency claiming the benefit of an exemption bears the burden of proving its entitlement to the exemption" (Barfield v. Sch. Bd. of Manatee Cnty., 135 So. 3d 560, 562 (Fla. 2d DCA 2014)). Rule 2.420(m)(2): "If the request is denied, the custodian must state in writing the basis for the denial." Whether this recording came from a security system is the custodian's fact to state and prove.

Entry 13 of 31 · NEW-AG1 · Office of the Attorney General, counsel for the Circuit defendants, Feb. 2 to Oct. 5, 2026

Recusal emails left out of counsel's account

Deviation

On Aug. 22, 2025 the Court Administrator withheld four pages of "correspondence between Judge DePaul and our Assistant General Counsel regarding an Order of Recusal" from Husband's Aug. 14, 2025 request (App. 39). The amended petition demands those records (No. 25-CA-010255, DIN 12 at 15). In February and March 2026 the Attorney General's office told the court that "additional records showing mental impressions and the reasons for recusal from his family law case" were "not available for release based on judicial immunity, if such records exist" (DIN 55 at 6; DIN 65 at 7). In May 2026 it told the court that "the public records request was complied with and the only portion of Plaintiff's request that was withheld was the security video" (DIN 83 at 7). That response summarized the petition as seeking "Judicial disqualification and recusal records," cited only the letters answering the July 2025 requests, and never mentioned the four withheld pages (DIN 83 at 2-4, 7).

Expected output

Art. I, s. 24(a) puts the burden on the custodian: it identifies every record it withholds and the rule that exempts it, and what its counsel tells the court about withheld records is complete. The office wrote that duty itself in its first three responses: the custodian "must provide the grounds for the exemption and include the statutory cite for the exemption" (DIN 40 at 4; DIN 55 at 4; DIN 65 at 4).

Verified facts and law

- **Aug. 27 to Sept. 10, 2026:** ordered to state "the specific constitutional, statutory, or rule-based basis" for each withheld record (App. 32), the office cited Rule 2.420(c)(1) for "the four (4) pages withheld," then listed five emails dated April 28, 2025, general subject matter "judicial recusal," each marked "This document is confidential under judicial immunity." (DIN 98 at 3; App. 38.)
- **Sept. 17 to Oct. 5, 2026:** an amended response described "five (5) emails on four (4) pages," each "confidential under Fla. R. Jud. Admin. 2.420(c)(1)," a rule the office called "very closely related to judicial immunity" (App. 14-15; DIN 102 at 3). Judge Coleman ordered a certification "sworn under penalty of perjury" stating whether the list "is complete as to every record responsive to Plaintiff's requests" (App. 4). The Oct. 5 certification vouches for the list only "as to the records withheld in response to Plaintiff's records request dated August 14, 2025" (App. 12).

Independent encounter

Jessica Schwieterman, Senior Assistant Attorney General, under Attorney General James Uthmeier (every filing, as counsel for the Thirteenth Circuit and its judges). Judge Sherwood Coleman (the Aug. 27 and Sept. 28, 2026 orders). One records lawsuit, one list of withheld records. Each duty here arises from Article I, section 24 and Rule 2.420 on this lawsuit alone.

Lawful output

Art. I, s. 24(a), Fla. Const. presumes judicial-branch records open; the custodian asserting an exemption carries the burden of showing it applies. The office's own April 1, 2026 motion says judicial immunity "protects judges from liability for damages for acts performed in the course of their judicial capacities unless they clearly act without jurisdiction" (DIN 72 at 4). This suit seeks records.

Entry 14 of 31 · FNEW-A3 · Office of the Attorney General, for the judicial defendants, Mar. 10 to Apr. 28, 2026

Initial disclosures naming one document: Husband's own filing

Deviation

The Circuit defendants carry the burden of justifying every record they withhold. Their initial disclosures listed one document: "Public Records that were previously provided to Plaintiff and filed in this case on October 15, 2025, located on the docket as DIN 6" (No. 25-CA-010255, DIN 70 at 2). DIN 6 is Husband's own exhibit filing. They named three judges and a court administrator as witnesses, then 22 days later moved to stay all discovery, arguing that a judge's testimony may be compelled only when it is "absolutely necessary" (DIN 70 at 2; DIN 72 at 4).

Expected output

Art. I, s. 24(a) puts the burden on the custodian: the Circuit proves each exemption with evidence it brings forward. A custodian making Rule 1.280 disclosures in a records case lists its proof: the exemption decision, the search, the recording, the records withheld.

Verified facts and law

- **Feb. 17 to Mar. 10, 2026:** after Husband asked by email, "Please send over your initial disclosures" (DIN 69 at 1), the defendants served disclosures, certified as filed Mar. 10, 2026, "pursuant to Florida Rule of Civil Procedure 1.280" (DIN 70 at 1, 3). They name four witnesses: Chief Judge Sabella, Judge Ayers, Judge Felix, and "RICK MELINDI" [sic]. The one document is DIN 6, which Husband filed 146 days earlier. (DIN 70 at 2.)
- **Apr. 1, 2026:** the same office moved to stay all discovery: "A party may not depose or otherwise compel the testimony of a judge unless '. . . the testimony is absolutely necessary to establish factual circumstances not in the record . . .'" It also invoked judicial immunity for "the Court's mental impressions involved in this litigation." (DIN 72 at 4.)
- **Mar. 18 to Apr. 28, 2026:** Husband served his discovery on Mar. 18 (Doc. 304 at 61). On Apr. 28 the court stayed "all discovery, except for Plaintiff's Request for Admission," including Defendants' "responsibility to respond to Plaintiff's Request for Production and Request for Interrogatories" (Doc. 304 at 62). The one channel left open produced the admission that no analysis weighed the public interest, because "the video is confidential" (Filing No. 256559091 at 21).

Independent encounter

Jessica Schwieterman, Senior Assistant Attorney General under Attorney General James Uthmeier, signed the disclosures and the stay motion as counsel for the Thirteenth Circuit, Court Administrator Gina Justice, Chief Judge Sabella, Judge Ayers and Judge Felix. One lawsuit, one disclosure, one document. Each duty here arises from Article I, section 24 on this lawsuit alone.

Lawful output

"The governmental agency claiming the benefit of an exemption bears the burden of proving its entitlement to the exemption" (Barfield v. Sch. Bd. of Manatee Cnty., 135 So. 3d 560, 562 (Fla. 2d DCA 2014)). Rule 2.420(m)(2) requires the custodian to state in writing the basis for any denial. A burden of proof is met with evidence. Letters asserting the exemption, filed by the requester, restate it without proving it.

Discovery stayed on the video exemption

Deviation

Fourteen days after Husband served discovery on the withheld video, the Attorney General's office moved to stay all of it, telling the court that "the documents subject to the litigation have been filed with the Court as part of the initial filing or are confidential and have not been provided in accordance with the Florida Statutes" (No. 25-CA-010255, DIN 72 at 5; Doc. 304 at 61). The court stayed all discovery except requests for admission, and the stay remains in place (Doc. 304 at 62; App. 33).

Expected output

Art. I, s. 24(a) puts the burden on the custodian, and a protective order needs good cause shown by the party asking for it. The motion itself described documents that "are confidential and have not been provided" (DIN 72 at 5). The expected output was to list each one with its basis and let discovery test the video exemption.

Verified facts and law

- **Mar. 18 to Apr. 17, 2026:** Husband served seven requests for admission, six interrogatories and five document requests directed at the withholding of the April 4, 2025 video and the records search (DIN 71 at 1-6). The office moved for a stay on Apr. 1; the Apr. 17 response date passed with that motion pending (Doc. 304 at 61).
- **Apr. 28 to Aug. 27, 2026:** the court ordered that "all discovery, except for Plaintiff's Request for Admission, is stayed" and found "that this matter should be set for a final evidentiary hearing" (Doc. 304 at 62). On Aug. 27 it left the stay in place and clarified that Defendants "must make the particularized exemption showing and tender the records for in-camera inspection before Plaintiff is required to identify any disputed facts or before a final evidentiary hearing is set" (App. 33).
- **May 26 to Sept. 10, 2026:** fifty-five days after the motion, the office told the court "the only portion of Plaintiff's request that was withheld was the security video," citing only the letters on Husband's July 2025 requests (DIN 83 at 3-4, 7). On Sept. 10 it listed five emails on Judge DePaul's recusal, withheld since Aug. 22, 2025 (App. 38-39).

Independent encounter

Jessica Schwieterman, Senior Assistant Attorney General under Attorney General James Uthmeier, signed the motion as counsel for the Thirteenth Circuit, Court Administrator Gina Justice, Chief Judge Sabella, Judge Ayers and Judge Felix. Judge Sherwood Coleman (the Apr. 28 stay, kept Aug. 27, 2026). One motion, one stay, one set of unanswered discovery. Each duty here arises from Article I, section 24 and the good-cause rule on this motion alone.

Lawful output

The custodian claiming an exemption "bears the burden of proving its entitlement" to it (Barfield, 135 So. 3d at 562). On the motion's own Rule 1.280 footing, "The burden of showing good cause is on the party seeking the protective order," and "Florida courts have disapproved the entry of protective orders prohibiting the taking of depositions generally and orders providing for lengthy postponements of discovery" (Bush v. Schiavo, 866 So. 2d 136, 138 (Fla. 2d DCA 2004)).

The April 4 video, refused three times by orders naming no judge

Deviation

The Second District refused Husband's request for the April 4, 2025 video, including an in camera look, three times in orders naming no judge, the last nine days before it affirmed (Doc. 254 at 1; Doc. 262 at 1; Doc. 282 at 1; Doc. 324 at 1). Asked which judges decided, the clerk answered that the records showing it are confidential and exempt (App. 152).

Expected output

Art. I, s. 24(a), Fla. Const. presumes the Second District's own records open and puts the burden of any exemption on the court as custodian. Under the court's procedures, "The clerk schedules and assigns cases." (2d DCA Internal Operating Procedures s. 3.4 (eff. Dec. 1, 2025)). Asked who decided, the court names the judges, or identifies each record it withholds and states the specific basis for each, as Rule 2.420(m)(2) requires.

Verified facts and law

- **Sept. 23, 2025:** Husband moved to supplement the record with the video of the hearing at which Judge Ayers said, "I will go get the camera footage and do it because I have not rolled my eyes at you" (Doc. 198, Tr. 75:12-14), and with Judge DePaul's recusal document. In the alternative he asked the court to "conduct an in camera review of the evidence." (No. 25-CA-010255, DIN 6 at 25, 29).
- **Nov. 26, 2025:** "BY ORDER OF THE COURT: Appellant's 'Motion to Supplement the Record with Video of 4/4/25 Hearing and Recusal Documents' is denied." The only signature is the clerk's certification (Doc. 254 at 1).
- **Jan. 27, 2026:** Husband's motion for rehearing, clarification and a "Formal Written Order" was denied in one sentence, again naming no judge (Doc. 262 at 1).
- **Apr. 6 and 15, 2026:** The court struck five of Husband's filings and denied his April 3 "Supplemental Motion to Supplement the Record, and Motion for Panel Review of 4-4-25 Video," naming no judge (Doc. 282 at 1). Nine days later it affirmed (Doc. 324 at 1).
- **July 27, 2026:** The clerk, writing "On behalf of Chief Judge Lucas," answered that records reflecting which judges participated in those orders "are confidential and exempt under rule 2.420(c)(1) unless filed as a part of the court record. There are no documents filed as part of the court record that reflect which judges participated in those orders." (App. 152).

Independent encounter

The unnamed judges of the Second District (three orders). Clerk Mary Beth Kuenzel (certified the orders; answered for Chief Judge Lucas). One video request, three orders, one records answer. Each duty here arises from Article I, section 24 and the court's own procedures on this record alone.

Lawful output

Art. I, s. 24(a), Fla. Const. presumes judicial-branch records open and puts the burden of any exemption on the custodian. Rule 2.420(m)(2) requires the custodian to state in writing the basis for each denial. The court's procedures place case assignment with the clerk.

Prohibition petition denied in one sentence

Deviation

Husband petitioned for a writ disqualifying Judge Felix, a named defendant in Husband's records suit, No. 25-CA-010255 (No. 2D2026-0279, Petition (Feb. 2, 2026) at 9, 16). Eight days after Husband e-filed it, a panel of Judges Villanti, Sleet and Smith denied the petition in one sentence. The order states no reason and does not address the request to transfer venue (Doc. 270 at 1).

Expected output

Art. I, s. 9, Fla. Const. guarantees an impartial judge, and Rule 2.330(e)(2)(C) makes a judge's interest in the result a ground for disqualification. Shown that the trial judge is a defendant in the petitioner's pending lawsuit, the Second District rules on that ground and decides the request to transfer venue.

Verified facts and law

- **Feb. 2, 2026:** Husband e-filed the petition at 10:54 PM. It asked for a writ "disqualifying Judge Matthew Felix and all judges of the Thirteenth Judicial Circuit from presiding over Case No. 24-DR-001150 and directing a transfer of venue to a neutral circuit," and identified Judge Felix as "Defendant in the Mandamus action." (No. 2D2026-0279, Petition at 1, 9, 16).
- **Feb. 10, 2026:** "Petitioner's petition for writ of prohibition is denied." "VILLANTI, SLEET, and SMITH, JJ., Concur." (Doc. 270 at 1).
- **Feb. 10 to Oct. 7, 2026:** Judge Felix has continued to preside over this case while remaining a defendant in No. 25-CA-010255 (Doc. 331 at 1-2; App. 10).

Independent encounter

Judges Villanti, Sleet and Smith (the one-sentence denial). One petition, one order. Each duty here arises from the Second District's own prohibition jurisdiction over this petition on this record alone.

Lawful output

Art. I, s. 9, Fla. Const. and the Fourteenth Amendment guarantee an impartial tribunal: "[N]o man can be a judge in his own case." (In re Murchison, 349 U.S. 133, 136 (1955)). Art. V, s. 4(b)(3), Fla. Const. gives the Second District jurisdiction in prohibition to enforce that guarantee.

Entry 18 of 31 · N-138 · Second District Court of Appeal, Clerk for the Chief Judge, July 27 to Oct. 2, 2026

A disclosed recusal with no date

Deviation

The Second District disclosed that Judge Andrea Teves Smith "is recused in case no. 2D2025-0681." A judge Smith sat on the panels that decided two of Husband's other appeals arising from this case. Asked whether any judge "is recused, or has been recused at any point" in three of his appeals, the clerk answered that "no judges are recused in these cases." The clerk has stated no date on which the disclosed recusal took effect (App. 152, 178).

Expected output

Art. I, s. 24(a), Fla. Const. presumes the court's records open and puts the burden on the custodian. Section 1.7 of the court's procedures says "Parties may inquire of the clerk to determine whether any judge is recused in their case," and a judge who finds a conflict notifies the clerk, "who will designate a substitute judge." (2d DCA Internal Operating Procedures s. 1.7). Asked whether any judge has been recused at any point, the clerk answers for each case and gives the date the disclosed recusal took effect.

Verified facts and law

- **July 27, 2026:** The clerk, "On behalf of Chief Judge Lucas": "You have asked whether any judge is recused in your cases. Judge Andrea Teves Smith is recused in case no. 2D2025-0681." (App. 152).
- **Feb. 10 and Apr. 15, 2026:** "VILLANTI, SLEET, and SMITH, JJ., Concur." (Doc. 270 at 1). "KHOUZAM, ROTHSTEIN-YOUAKIM, and SMITH, JJ., Concur." (Doc. 324 at 1). The court's July 14, 2026 letterhead lists one Judge Smith, Andrea Teves Smith (App. 148).
- **Aug. 20, 2026:** The clerk: "You have asked 'whether any judge is recused, or has been recused at any point, in Case No. 2D2025-1936, in Case No. 2D2026-0279, and in Case No. 2D2026-1955.' As permitted by the court's Internal Operating Procedures, I am responding that no judges are recused in these cases." (App. 178).
- **Oct. 2, 2026:** Husband asked when the recusal took effect, its ground, and whether it was considered in Nos. 2D2026-0279 and 2D2025-1936 (App. 163). As of Oct. 3, 2026, Husband had received no answer.

Independent encounter

Clerk Mary Beth Kuenzel, writing for Chief Judge Lucas (both answers). One inquiry under the court's own procedure, one disclosed recusal, one unstated date. Each duty here arises from Article I, section 24 and section 1.7 of the court's procedures on this record alone.

Lawful output

Art. I, s. 24(a), Fla. Const. presumes judicial-branch records open and puts the burden of any exemption on the custodian. Rule 2.420(m)(2) requires the written basis for each denial. Art. I, s. 9, Fla. Const. guarantees an impartial tribunal, and Husband believes the date a recusal took effect is how a party tests that guarantee.

Blanket exemption and a fee before review

Deviation

The Second District's marshal declared "Any records of" two request categories confidential and exempt without identifying a record, conditioned the name-search review on $313.00 paid in advance, and stated the exemption she expects before reviewing the records (App. 153, 155, 156, 158).

Expected output

Art. I, s. 24(a), Fla. Const. and Rule 2.420(m)(2) require the custodian to find the records, decide each one, and state in writing the basis for each denial. The marshal's own email describes that method: review each message and "determine whether the message is confidential and exempt." (App. 153).

Verified facts and law

- **Aug. 4, 2026:** Answering Husband's July 20 request, Marshal Haynes declared "Any records of" two categories confidential and exempt under Rule 2.420(c)(1), with no record identified. Under the second category she attached two records naming Husband, one a Teams message reading, in full, "Pro Se, Christopher Hanson has arrived". For the name search: "The charge for this time is $313.00. Upon receipt of payment, I will proceed with the review of these e-mail messages and attachments." (App. 153, 155).
- **Aug. 20, 2026:** "The research cost is based on my hourly base salary." She estimated "at least 4 hours" of review "Based on the volume of potentially responsive account records identified in the first query," and wrote: "I suspect that your name, when it appears in administrative communications, will be in a confidential, exempt record." "There are no responsive phone logs." (App. 158).
- **Sept. 29, 2026:** "No waiver is authorized." "No document or record identifies how many potentially responsive records the first query identified." "Upon payment, I will ask them to update the first query." "I expect that any record withheld will be a confidential and exempt record under Rule 2440(c)(1) [sic]. I will state the basis in writing when I have reviewed the records." (App. 156).

Independent encounter

Marshal Jacinda (Jo) Haynes, custodian's designee for the Second District's administrative records (every answer and the $313.00 charge). One request, one custodian, one email thread. Each duty here arises from Article I, section 24 and Rule 2.420 on this record alone.

Lawful output

Art. I, s. 24(a), Fla. Const. gives every person the right to inspect or copy public records, presumes them open, and places the burden of establishing an exemption on the entity asserting it. Rule 2.420(m)(2) requires the custodian to state in writing the basis for any denial. Rule 2.420(m)(3) sets fees at the amounts section 119.07 provides.

Sworn complaint closed in six days

Deviation

The Bar closed Husband's sworn complaint against Wife's lawyer six days after filing, without asking Davis to respond (Doc. 309 at 1, 3). Its appellate brief says the file "was closed without further investigation." (App. 107). Asked repeatedly whether it had any other communication with Davis, the Bar answered "This matter is closed." (No. 1D2026-0728, R. 320). After Husband sued for the records, the Bar reported them "disposed of," naming no date (Doc. 343 at 4).

Expected output

Rule 3-7.3(b) requires bar counsel to "investigate the allegations contained in any written complaint that is signed under oath." Husband signed "[u]nder penalties of perjury." (Doc. 200 at 4). Asked whether the Bar communicated with Davis about the complaint, the Bar answers yes or no. Records sought in a pending records suit are preserved. A slide deck bearing the Deputy General Counsel's name states: "If you have the record, it must be produced even if it could have been disposed of under your retention schedule." (Doc. 305 at 3).

Verified facts and law

- **Feb. 18 to 24, 2025:** Filed Feb. 18; closed "effective February 24, 2025." (Doc. 309 at 1). Bar Counsel reviewed "the submitted documentation" and "the underlying docket." (Doc. 200 at 29). Counsel for two Bar officials later told this Court "the Bar did not act on his complaint and so did not share it with or request a response from Mr. Davis." (Doc. 309 at 3).
- **Sept. 12 to 24, 2025:** Husband asked, "Is there a rule against speaking with me?" The reply: "This matter remains under review of the grievance committee chair." (Doc. 305 at 94). Sept. 24: "Further correspondence from you regarding this matter will be placed in the file without response." (Doc. 304 at 218).
- **Nov. 10, 2025 to Jan. 27, 2026:** Husband asked in writing on Nov. 10, Nov. 21, Dec. 1 and Dec. 15 whether the Bar had any communication with Davis beyond one typo email (Doc. 305 at 118, 124-125; R. 320). Dec. 15: "This matter is closed." (R. 320). Jan. 27, after suit, the Bar's motion: "Such records were not provided because they do not exist." (Doc. 304 at 211).
- **Feb. 24, 2025 to June 5, 2026:** The closure letter set disposal "one year from the date of closure," Feb. 24, 2026 (Doc. 200 at 29). Husband sued on Dec. 17, 2025, 69 days earlier (R. 5). June 5, 2026, with his appeal pending (Doc. 304 at 232), the Bar wrote that the records "have been disposed of pursuant to judicial branch and bar records retention schedule and are no longer available." (Doc. 343 at 4). Husband believes the records were destroyed after he sued for them.

Independent encounter

Bar Counsel Allie F. Huston (closure). Director of Intake Shanell M. Schuyler (Sept. 24 letter). Deputy General Counsel Rick Courtemanche (replies; June 5 letter). John Londot, Greenberg Traurig, for the Bar (Jan. 27 motion). One sworn complaint, one set of written questions, one file. Each duty here arises from the Bar's own rules on this record alone.

Lawful output

Art. V, s. 15, Fla. Const. vests attorney discipline in the Supreme Court. Rule 3-7.3(b): bar counsel "must investigate" a complaint signed under oath. Rule 3-7.1(b): correspondence "furnished to, served on, or received from the respondent" is public record. Art. I, s. 24(a), Fla. Const. presumes the records open and puts the burden on the custodian.

Entry 21 of 31 · N-055 · The Florida Bar, Grievance Chair Alicia Gangi and Director of Intake Shanell M. Schuyler, Sept. 24, 2025

Three described reviews, then "did not act"

Deviation

The Bar's Director of Intake told Husband his complaint received "investigation by a Senior Staff Attorney" and two further reviews (Doc. 304 at 218). Counsel for that same Director later told this Court "the Bar did not act on his complaint." (Doc. 309 at 3, 6). The Bar's appellate brief told the First District the file "was closed without further investigation." (App. 107).

Expected output

Rule 3-7.3(b) requires bar counsel to investigate a complaint signed under oath, and Husband's was (Doc. 200 at 4). Rule 3-7.3(d), which the Director's own letter invokes (Doc. 304 at 218), permits dismissal "after complete investigation" with notice of the "reasons for dismissal." A Director who reports an investigation and two reviews can show the work of each. The Bar gives the complainant and the courts one account of what it did.

Verified facts and law

- **Feb. 24, 2025:** Bar Counsel Allie F. Huston closed the complaint six days after filing (Doc. 309 at 1). Her letter: "In addition to the submitted documentation, I also reviewed the underlying docket in Hillsborough County Case No. 2024-DR-1150." (Doc. 200 at 29). Davis was never asked to respond (Doc. 309 at 3).
- **Sept. 23 to 24, 2025:** Grievance Committee 13A Chair Alicia Gangi sustained the closure, copying Davis "so that the attorney is aware that an additional review of this matter has taken place." (Doc. 304 at 220). The next day, Director of Intake Shanell M. Schuyler: "The review of your allegations against Mr. Davis included investigation by a Senior Staff Attorney, review of the closure by the undersigned as Director of Intake, and a review by the Chair of Grievance Committee 13A." And: "Further correspondence from you regarding this matter will be placed in the file without response." (Doc. 304 at 218).
- **May 22 to June 30, 2026:** Counsel for Ms. Schuyler and the Deputy General Counsel, in this case: "the Bar did not act on his complaint and so did not share it with or request a response from Mr. Davis." (Doc. 309 at 3, 6). June 5: the requested records of the complaint "have been disposed of." (Doc. 343 at 4). June 30, the Bar's brief: the file "was closed without further investigation," and the review was "limited to the submissions and court records." (App. 107).

Independent encounter

Bar Counsel Allie F. Huston (closure). Alicia Gangi, Chair, Grievance Committee 13A (Sept. 23 letter). Shanell M. Schuyler, Director of Intake (Sept. 24 letter). One sworn complaint, one file, three described reviews. Each duty here arises from the Bar's own disciplinary rules on this record alone.

Lawful output

Art. V, s. 15, Fla. Const. vests attorney discipline in the Supreme Court. Rule 3-7.3(b): bar counsel "must investigate" a complaint signed under oath. Rule 3-7.3(d) permits dismissal "after complete investigation." Art. I, s. 24(a), Fla. Const. presumes the closed file open and puts the burden on the Bar.

Entry 22 of 31 · FNEW-B2 · The Florida Bar, Deputy General Counsel Richard Courtemanche, Dec. 15, 2025

A yes-or-no question answered "This matter is closed."

Deviation

Asked in writing, from Nov. 10, 2025 on, whether the Bar had any communication with Davis about the complaint beyond one typo email, the Bar's Deputy General Counsel replied: "This matter is closed. Thanks." (No. 1D2026-0728, R. 320). The Bar's first answer came Jan. 27, 2026, 78 days after the first question and after Husband sued, in a motion to a court (Doc. 304 at 211).

Expected output

Art. I, s. 24(a), Fla. Const. puts the burden on the custodian, and the Bar concedes its records "are governed by" Rule 2.420 (Doc. 304 at 211 n.4). Asked whether any Davis correspondence existed beyond one email, the custodian answers yes or no; if yes, it names the rule that withholds it; if no, it confirms that in writing.

Verified facts and law

- **Nov. 10 to 24, 2025:** Husband: "Was that the extent of the communication with Mr. Davis throughout this matter including all of my appeals and requests for additional review?" and "If no such communications exist beyond the typo note, please confirm this in writing." (Doc. 305 at 125). Nov. 24 reply: "You have been provided the entire public record under Rule 3-7.1(b)." (Doc. 305 at 123).
- **Dec. 1, 2025:** Husband narrowed it to four numbered questions, the first: "Apart from Mr. Davis's brief e-mail pointing out a typographical error, did the Bar receive any written or electronic communication from and/or send any written or electronic communication to Mr. Davis (or anyone on his behalf) in connection with this complaint?" If no, "will the Bar please confirm that in writing?" (Doc. 305 at 118).
- **Dec. 15 to 17, 2025:** The reply, in full: "Mr. Hanson: As my correspondence dated November 24 stated, you have been provided the entire public record under Rule 3-7.1(b), Rules Regulating The Florida Bar. This matter is closed. Thanks." (R. 320). Husband sued on Dec. 17 (R. 5).
- **Jan. 27 to June 30, 2026:** The Bar's motion: "Such records were not provided because they do not exist." (Doc. 304 at 211). Its appellate brief: the records "were not provided because they were not a part of the file," and "If the grievance file contained information pertaining to communications with Mr. Davis, the Bar would be obligated to provide it." (App. 108 & n.3). The exhibit to that motion is three Bar letters, each copied to Davis (Doc. 304 at 217-220).

Independent encounter

Deputy General Counsel Rick Courtemanche (Nov. 24 and Dec. 15 replies). John Londot, Greenberg Traurig, for the Bar (the Jan. 27 motion). One records request, one set of written questions, one reply. Each duty here arises from Article I, section 24 and the Bar's own public-record rule on this request alone.

Lawful output

Art. I, s. 24(a), Fla. Const. presumes the Bar's records open and puts the burden of any withholding on the Bar. Rule 2.420(m)(2): "If the request is denied, the custodian must state in writing the basis for the denial." Rule 3-7.1(b) makes correspondence "furnished to, served on, or received from the respondent" part of the closed-file public record.

Records reported "disposed of," no date given

Deviation

After Husband sued for the records of his complaint, the Bar's Deputy General Counsel reported them "disposed of" and "no longer available," naming no date and no one who authorized it (Doc. 343 at 4). The only disposal date the Bar ever announced, Feb. 24, 2026, fell 69 days after Husband sued (Doc. 200 at 29; No. 1D2026-0728, R. 5).

Expected output

Art. I, s. 24(a), Fla. Const. presumes the Bar's records open. Records sought in a pending records suit are preserved. A custodian that reports records gone states when they went, under which provision, and on whose authority. A slide deck bearing the Deputy General Counsel's name states: "If you have the record, it must be produced even if it could have been disposed of under your retention schedule." (Doc. 305 at 3).

Verified facts and law

- **Feb. 24 to July 16, 2025:** The closure letter: "the computer record and file of this matter will be disposed of one year from the date of closure," that is, Feb. 24, 2026 (Doc. 200 at 29). The Director's July 16 letter repeats that the file "will be disposed of one year from closure pursuant to the Bar's record retention policy." (Doc. 304 at 219).
- **Nov. 10 to Dec. 17, 2025:** Husband requested the records on Nov. 10. The Bar's response warned that "any response is subject to judicial branch and bar records retention schedules." (Doc. 309 at 9). The Bar's own motion describes the request as "all records related to his Bar complaint." (Doc. 304 at 211). Husband sued for them in Leon County on Dec. 17, 2025 (R. 5).
- **Feb. 13 to June 5, 2026:** The Leon court dismissed Feb. 13 and denied rehearing Feb. 24, 2026 (Doc. 304 at 222-223, 230). Husband appealed Mar. 8 (Doc. 304 at 232). On June 5, 101 days after the announced disposal date, the Bar wrote: "The requested records relating to RFA 25-6861 have been disposed of pursuant to judicial branch and bar records retention schedule and are no longer available." (Doc. 343 at 4). The appeal was pending (App. 104). Husband believes the records were destroyed after he sued for them; the Bar has named no date that shows otherwise.

Independent encounter

Deputy General Counsel Rick Courtemanche (Nov. 10 response; June 5 letter). Bar Counsel Allie F. Huston (closure letter and its disposal clock). One complaint file, one records request, one letter. Each duty here arises from Article I, section 24 and the Bar's own retention notice on this file alone.

Lawful output

Art. I, s. 24(a), Fla. Const. presumes the Bar's records open and puts the burden of any withholding on the custodian. The Bar concedes its records "are governed by" Rule 2.420 (Doc. 304 at 211 n.4), and Rule 2.420(m)(2) requires that "the custodian must state in writing the basis for the denial."

Chambers asked the Bar for a granting order before the opposition was filed

Deviation

Eight days after the Bar moved to dismiss, and the day before Husband filed his opposition, Judge Dempsey's judicial assistant wrote the Bar's lawyer: "Please provide an order in word granting the Motion to Dismiss." (Doc. 310 at 48). Nine days later the court entered final judgment for the Bar on three grounds Husband's response had addressed, and no hearing was set (Doc. 304 at 222-223; No. 1D2026-0728, R. 4-5).

Expected output

On a motion to dismiss a verified records petition, the court takes the petition's facts as true and reads the opposition before it decides. Whether records "do not exist" is a fact question decided on evidence.

Verified facts and law

- **Jan. 22 to Feb. 5, 2026:** Husband moved Jan. 22 for an alternative writ "and for expedited hearing." The Bar moved to dismiss Jan. 27 (R. 4). The docket shows no order setting a response date or a hearing (R. 4-5). Feb. 4, 11:27 AM, the judicial assistant: "Please provide an order in word granting the Motion to Dismiss." (Doc. 310 at 48). At 12:19 PM Husband asked for "just 14, or even 10 days" and "a hearing and an opportunity for argument before the Court on the dismissal issue." (Doc. 310 at 47-48). The Bar's proposed order went to chambers at 5:27 PM (Doc. 310 at 46). Husband's opposition was filed Feb. 5 (R. 4).
- **Feb. 13, 2026:** The judgment recites that the court "reviewed the file including Plaintiff's Response and attachments," and carries the caption error in the Bar's motion, "IN AND FOR OR LEON COUNTY." (Doc. 304 at 202, 222). Ground 1, no jurisdiction "to review the Bar's decision to dismiss Plaintiff's grievance": the response said "discipline is no part of the relief requested." (Doc. 304 at 222, 240). Ground 2, "immune from suit": the response said "Plaintiff Hanson is not suing for tort damages. He is petitioning for Mandamus." (Doc. 304 at 222, 241). Ground 3, "all the reasons articulated in the Defendants' Motion to Dismiss," including "Such records were not provided because they do not exist": the response called existence "a disputed question of fact." (Doc. 304 at 211, 222, 246).
- **Feb. 19 to 24, 2026:** Rehearing was denied five days after filing: "There is no legal or factual basis to grant Plaintiffs' motion." (Doc. 304 at 230).

Independent encounter

Judge Angela C. Dempsey (judgment; rehearing denial). Kerri L. Owens, her judicial assistant (Feb. 4 request). John Londot, Greenberg Traurig, for the Bar (motion; proposed order). One petition, one motion, one response, one judgment. Each duty here arises from the rules governing this mandamus petition on this record alone.

Lawful output

Art. I, s. 24(a), Fla. Const. presumes the record open; the custodian carries the burden. Rule 2.420(l)(2) sends actions against a non-judge custodian to the circuit court. Rule 1.630(d): if the complaint "shows a prima facie case for relief, the court must issue" an alternative writ in mandamus.

Entry 25 of 31 · NEW-P3 · Judges Frayman and Coleman; counsel for the Circuit defendants, Dec. 19, 2025 to Mar. 23, 2026

Three responses in 75 days on an expedited remedy

Deviation

Rule 2.420(l) requires that review of a court-records denial be "expedited." With the Circuit defendants' response already on file, Judge Evan G. Frayman issued an alternative writ that gave them twenty more days, explaining: "even though they did file a response in opposition, technically I can't consider that and jump through the process of not issuing the alternative writ," and "I'll take full responsibility for the delay in that regard." (Doc. 303 at 29-30, Jan. 13, 2026 Tr. 14:4-7, 15:11-12.) On Husband's Jan. 27 motion, Judge Coleman vacated that writ in full rather than in part and issued a new writ returnable March 4 (No. 25-CA-010255, DIN 61 at 3; DIN 62 at 2). The third response came that day, 75 days after the Dec. 19, 2025 service (DIN 32-36; DIN 65 at 1-2).

Expected output

Rule 2.420(l) makes review "expedited." On that docket each discretionary choice favors speed: the response already filed moves the case forward, and a defect is cut out rather than the whole writ.

Verified facts and law

- **Dec. 19, 2025 to Jan. 13, 2026:** all five Circuit defendants were served Dec. 19, 2025 (DIN 32-36). Their first response was filed Jan. 8, 2026, twenty days later (DIN 40 at 1-2). At the Jan. 13 conference Husband said "they've had a lot more than twenty days since they've been formally served" (Doc. 303 at 30, Tr. 15:7-9).
- **Feb. 2 to 17, 2026:** the second response came Feb. 2, twenty days after the Jan. 13 writ (DIN 55 at 1). At the Feb. 6 hearing Husband told Judge Coleman, "You can vacate the order in parts." (Doc. 303 at 85, Feb. 6, 2026 Tr. 33:2-3.) The written order vacated the whole writ, acknowledged Husband's argument that doing so "may cause delay," and found "no additional delay is created because Defendants would have still been allowed the opportunity to respond within twenty days had the order been vacated only in part" (DIN 61 at 3 & n.3). The new writ issued Feb. 17, returnable March 4 (DIN 62 at 2).
- **Mar. 4 to 23, 2026:** Husband moved to strike the second response as untimely; the court denied it because the third "supersedes the February 2, 2026 'Response in Opposition.'" (DIN 73 at 2-3.) The first response never cited s. 119.071(3)(a), the security-system statute invoked in August 2025; that ground first appeared in the second (DIN 40; DIN 55 at 8).

Independent encounter

Judge Evan G. Frayman (the Jan. 13, 2026 writ). Judge Sherwood Coleman (the vacatur, the reissued writ, the supersession ruling). Jessica Schwieterman, Senior Assistant Attorney General, for the Circuit defendants (all three responses). One amended petition, three responses from the same defendants, 75 days. Each duty here arises from Article I, section 24 and Rule 2.420(l) on this docket alone.

Lawful output

Rule 2.420(l): "Expedited review of denials of access to administrative records of the judicial branch must be provided through an action for mandamus or other appropriate relief." The defendants themselves litigate under chapter 119, and s. 119.11(1) says the court "shall set an immediate hearing, giving the case priority over other pending cases."

Facts held disputed, none named

Deviation

Judge Coleman told Husband that facts were in dispute in his records case. Asked "What are the issues of material fact based upon any of defendant's responses?", he answered: "Those issues are contained and delineated within their response." After pointing Husband to the summary-judgment rule, he said: "So, don't ask me to explain those matters to you." (July 24, 2026 Tr. 24:18-20, 25:4-8, 25:15-16 (App. 144-145).) His written order then denied the peremptory writ because "there are factual disputes" and named none (App. 31).

Expected output

Once the alternative writ issues, the respondents must come forward with facts. A court that denies the writ because facts are disputed names those facts, so the requester can meet them. The custodian identifies every record it withholds, and the basis, in writing at its first denial, here Aug. 21, 2025 (App. 28), whatever the label: exempt, confidential, not a public record, or judicial immunity.

Verified facts and law

- **Feb. 2, 2026:** the Circuit's counsel wrote that "Judicial immunity would apply to many of the requested records" and that "additional records" on "the reasons for recusal" are "not available for release based on judicial immunity, if such records exist" (DIN 55 at 4, 6).
- **July 24, 2026, 100 days after Husband's Apr. 15, 2026 motion for the writ (App. 29):** the exchange quoted above (July 24, 2026 Tr. 24:18-25:16 (App. 144-145)).
- **Aug. 27, 2026:** the order denied the writ because "there are factual disputes" (App. 31). Asked for findings identifying the disputed facts, it ordered instead that "Defendants who claim that any responsive record other than the Video is exempt or confidential must file a written statement that, as to each such record: (1) identifies the record by date, author, recipient(s), and general subject matter" (App. 31-32). By its terms that directive reaches records claimed exempt or confidential. The same order provides that Defendants "must make the particularized exemption showing and tender the records for in-camera inspection before Plaintiff is required to identify any disputed facts" (App. 33). On Sept. 10 the defendants listed five emails, each "confidential under judicial immunity" (App. 38).

Independent encounter

Judge Sherwood Coleman, the Sixth Circuit judge assigned to No. 25-CA-010255 (held facts disputed; named none). Jessica Schwieterman, Office of the Attorney General, counsel for the Thirteenth Circuit (signed the immunity filings). One petition, one writ, one set of withheld records. Each duty here arises from the court's own alternative writ and the records rules on this record alone.

Lawful output

Art. I, s. 24(a), Fla. Const. puts the burden of any exemption on the custodian, and Rule 2.420(m)(2) requires the basis for any denial in writing. Once the alternative writ issues, "the burden is on the respondent to come forth with facts upon which it refused to perform its legal duty" (Chandler v. City of Greenacres, 140 So. 3d 1080, 1083 (Fla. 4th DCA 2014), quoting Smith v. State, 696 So. 2d 814, 816 (Fla. 2d DCA 1997)). The court confirmed it "will determine the legal sufficiency of Defendants' return before any final evidentiary hearing is held" (App. 33).

Entry 27 of 31 · FNEW-U1 · University of Florida, records custodian John Hines and UF Information Technology, Mar. 30, 2026

Two mailboxes searched, attachments excluded

Deviation

Husband asked for "all written communications" of employees in the UF College of Journalism and Communications, text and Signal/WhatsApp messages included (App. 55). On March 30, 2026, UF's records custodian sent IT a search of two mailboxes and wrote: "The person did not ask for attachments." (App. 47).

Expected output

Art. I, s. 24(a), Fla. Const., and s. 119.07(1)(a), Fla. Stat., required UF to search the scope Husband wrote: every channel he listed, across the College employees his request named. Section 119.07(1)(c) makes a good-faith response include "making reasonable efforts to determine from other officers or employees within the agency whether such a record exists," and UF's own response quotes that text (Filing No. 251907242 at 8). A custodian that limits the search to two mailboxes tells the requester which ones, in writing.

Verified facts and law

- **Mar. 26, 2026:** The request covered "employees within the UF College of Journalism and Communications, specifically including but not limited to" the Brechner project, Dr. Cuillier and Professor Bambauer, and asked for "all written communications, including but not limited to emails, text messages, Signal/WhatsApp messages, internal memoranda, notes," including personal devices used for University business (App. 55-56). UF's acknowledgment stated: "Email searches will not include attachments unless specifically requested." (Filing No. 250752293 at 9).
- **Mar. 30, 2026, 11:29 AM to 12:48 PM:** The custodian asked IT to "handle the email search for this request" and listed two mailboxes, David Cuillier and Jane Bambauer (App. 47). IT reported: "This search concluded with 103 message(s), which resulted in 330 page(s). No attachments were included." (App. 48).
- **May 8 to July 7, 2026:** Husband asked for a certification "identifying the custodians and locations searched, including personal devices and private email accounts used for University business." (Filing No. 250752293 at 76). After he sued, UF answered: "Nowhere does Chapter 119 require that a state agency certify to a requestor that it has made a diligent search for records." (Filing No. 251907242 at 8). The custodian declared that he sent the search parameters to the two professors, who "sent me records that consisted of email correspondence with Petitioner." (App. 44, paras. 5-6).
- **Sept. 2, 2026:** Professor Bambauer testified that she searched her own text messages, and: "No one in IT searched my personal cell phone." (App. 71-72, Tr. 73:20-22, 74:16-17).

Independent encounter

John Hines, Director of Public Records and records custodian (wrote the instruction; declared the search under penalty of perjury). Daniel Quiros, UF Information Technology (ran and reported the two-mailbox search). One request, one instruction, one search. Each duty here arises from UF's own March 30, 2026 search design on this record alone.

Lawful output

Art. I, s. 24(a), Fla. Const., makes access to public records a constitutional right, presumes records open, and puts the burden of justifying any withholding on the custodian. Section 119.011(12), Fla. Stat., reaches official-business records in any physical form or means of transmission, and s. 119.07(1)(a) requires the custodian to permit inspection of every non-exempt public record the request describes.

Entry 28 of 31 · N-096 · University of Florida, records custodian and UF Information Technology, May 4, 2026

Request closed the day IT reported a stalled search

Deviation

At 10:40 AM on May 4, 2026, UF's IT office reported that its search tool "stalled before completing the search of Professor Bambauer's mailbox." (App. 49). At 3:11:24 PM the custodian marked the request Completed/Closed (App. 56), and at 3:22 PM UF told Husband: "This completes the public records request." (Filing No. 250752293 at 14, 16). The production was fifty-three pages of Husband's own correspondence with UF faculty (Filing No. 252419965 at 6; App. 87, Tr. 118:13-14).

Expected output

Art. I, s. 24(a), and s. 119.07(1)(a) required UF to produce every non-exempt record the request described, and s. 119.07(1)(c) required a good-faith search. A custodian told at 10:40 AM that its search stalled confirms the search is finished before it writes "complete." UF's legal office had 109 rerun pages in hand by 11:11 AM (App. 49). Anything kept back gets its statutory basis in writing under s. 119.07(1)(e).

Verified facts and law

- **May 4, 2026, 10:40 AM:** IT wrote: "After March 9th, 2026, no further emails were identified in her mailbox," and the tool "also identified 17 other messages that matched the criteria and should have been included previously." (App. 49). The email does not state that Professor Bambauer's mailbox after March 9 was searched again (App. 49).
- **May 4, 2026, 3:11 PM to 3:22 PM:** The request was marked Completed/Closed and UF wrote Husband that the production "completes the public records request." (App. 56; Filing No. 250752293 at 14, 16). At the hearing UF's counsel told the court: "Every witness has said there's nothing here except his own correspondence." (App. 87, Tr. 118:13-14).
- **May 5, 2026:** UF wrote Husband: "The university conducted a good faith search for any public records responsive to your request, including reaching out to the employees you identified and to UF IT to conduct email searches." (App. 42).
- **July 7 to Sept. 2, 2026:** The custodian's declaration gives May 4 one sentence: "On May 4, 2026, I delivered the responsive public records to Petitioner." (App. 44, para. 8). It does not mention the stall or the seventeen messages (App. 43-44). At the hearing he testified the rerun meant "the search was now done correctly with the additional pages" (App. 86, Tr. 117:7-8), and that he does not watch IT do the searches (App. 92, Tr. 130:23-24). Professor Bambauer testified no one told her that nothing after March 9 was captured (App. 72, Tr. 74:21-25).
- **Sept. 18, 2026:** The court denied the petition, finding after in camera review that all requested materials meeting the definition of a public record "were produced to Petitioner prior to the filing of this action." (App. 100).

Independent encounter

Daniel Quiros, UF Information Technology (reported the stall). John Hines, Director of Public Records and records custodian (closed the request; signed the declaration). James W. Kirkconnell, UF counsel (filed the declaration). One request, one closure, one sworn account. Each duty here arises from UF's own May 4, 2026 search on this record alone.

Lawful output

Art. I, s. 24(a), Fla. Const., makes access to public records a constitutional right, presumes records open, and puts the burden of any exemption on the custodian. Section 119.07(1)(a), Fla. Stat., requires the custodian to permit inspection of the non-exempt records its search located; s. 119.07(1)(c) requires a good-faith response; s. 119.07(1)(e) requires the statutory basis for anything withheld.

Entry 29 of 31 · N-097 · University of Florida, Office of the General Counsel and records custodian, May 4, 2026

109 rerun pages logged for release approval

Deviation

At 11:11 AM on May 4, 2026, UF's legal office logged "potentially responsive records (109 rerun PAGES; EXCLUDING Attachments)," copied "to be reviewed by the General Counsel and for approval to be released." (App. 49). Four hours later UF closed the request with a fifty-three-page production of Husband's own correspondence (App. 56; Filing No. 252419965 at 6). UF's May 4 transmittal does not identify the 109 pages (Filing No. 250752293 at 14-16), and UF states it "made no further production." (App. 42).

Expected output

Section 119.07(1)(a), Fla. Stat., requires the custodian to permit inspection of the non-exempt records its search located, and s. 119.07(1)(e) requires the statutory basis in writing for anything withheld. UF counted the pages and asked, "SHALL I PREPARE AN INVOICE?" (App. 49). The next step was a decision on the 109 pages, sent to Husband: delivery, or the statute for withholding.

Verified facts and law

- **May 4, 2026, 10:40 AM:** IT reported that its search tool "stalled before completing the search of Professor Bambauer's mailbox" and that 17 other messages "should have been included previously." (App. 49).
- **May 4, 2026, 11:11 AM to 3:22 PM:** Legal assistant Barbara L. Wood logged the 109 rerun pages for review and release approval (App. 49). At 3:11:24 PM the request was marked Completed/Closed (App. 56), and at 3:22 PM UF wrote Husband: "This completes the public records request." (Filing No. 250752293 at 14, 16).
- **July 7, 2026:** UF's response states that after Husband's May 8 reply, "The University made no further production." (App. 42).
- **Sept. 2 to 3, 2026:** UF's counsel sent the court the 109-page set as two files (106 and 3 pages), listed among "the files forwarded to the public records office as part of fulfilling this request," and wrote that they were "intended for an in camera review only; therefore, Mr. Hanson has not been included on this correspondence." (App. 96-97). The next day he wrote Husband: "I will have that request processed through the portal and provided to you once any exempt or confidential information is redacted." (App. 95).
- **Sept. 18, 2026:** The court found that all requested materials meeting the definition of a public record "were produced to Petitioner prior to the filing of this action." (App. 100). The order does not identify which of the 109 pages, if any, the May 4 production contained (App. 99-101).

Independent encounter

Daniel Quiros, UF Information Technology (reported the stall and the missed messages). Barbara L. Wood, Office of the General Counsel (logged the 109 pages for release approval). John Hines, records custodian (received both emails; marked the request complete that afternoon). One request, one day's emails, one set of pages. Each duty here arises from UF's own May 4, 2026 search on this record alone.

Lawful output

Art. I, s. 24(a), Fla. Const., makes access to public records a constitutional right, presumes records open, and puts the burden of any exemption on the custodian. Section 119.07(1)(a), Fla. Stat., requires the custodian to permit inspection of the non-exempt records its search located, and s. 119.07(1)(e) requires the statutory basis for anything withheld.

An 88-page keyword file built after closure

Deviation

Three days after UF wrote "This completes the public records request," UF's associate counsel had IT pull the results for "13th Circuit," two of Husband's case numbers, both judges and "surveillance video" into a separate file (App. 50), and an 88-page file was routed "for approval to be released." (App. 51). UF's response states it "made no further production" after May 4 (App. 42). As of Sept. 29, 2026, Husband has received no production of that file and no statement of which of its pages, if any, UF produced on May 4 (Husband's verified statement).

Expected output

Section 119.07(1)(a), Fla. Stat., required UF to permit inspection of the non-exempt records in the file its own lawyer built from Husband's request, or to name in writing, under s. 119.07(1)(e), the statute for any page it keeps. UF's counsel listed the file among "the files forwarded to the public records office as part of fulfilling this request." (App. 96).

Verified facts and law

- **May 7, 2026, 9:16 AM to 2:11 PM:** Associate Counsel Amy B. Quillen to IT: "can you pull out the results with the search terms 13th Circuit, 2025-CA-002469, 25-CA-10255, Judge Kelly Ayers, Judge Matthew Felix, and surveillance video? If yes, please provide those results as a separate pdf." (App. 50). Legal assistant Barbara L. Wood logged "additional potentially responsive records (88 PAGES)," copied "to be reviewed by the General Counsel and for approval to be released," first into the folder of a different request and, at 2:11 PM, into this one (App. 51-52).
- **May 8, 2026:** UF wrote that it "did locate public records that contain the search term 'Hanson,' which relate to individuals who are not you," and asked whether he sought them (Filing No. 250752293 at 75). Husband answered that day that he was "not seeking records about unrelated third parties" and asked for "Internal University communications ... referencing the case numbers, individuals, or keywords I identified" with a privilege log (Filing No. 250752293 at 76; App. 42). UF's May 8 message does not mention the 88-page file (Filing No. 250752293 at 75).
- **Sept. 2 to 3, 2026:** At the end of the Sept. 2 hearing the court ordered UF to produce "any documents that had been withheld" for in camera inspection within five days (App. 99). That day, 118 days after the file was built, UF's counsel sent it to the court, "intended for an in camera review only," without copying Husband (App. 96-97). On Sept. 3 he wrote Husband: "I will have that request processed through the portal and provided to you once any exempt or confidential information is redacted." (App. 95).
- **Sept. 18, 2026:** The court found that all requested materials meeting the definition of a public record "were produced to Petitioner prior to the filing of this action." (App. 100). The order does not mention the 88-page file (App. 99-101).

Independent encounter

Amy B. Quillen, Associate Counsel (ordered the separate file). Barbara L. Wood, legal assistant (routed it for release approval). James W. Kirkconnell, Assistant Counsel (sent it to the court; promised it through the portal). One request, one file, one demand. Each duty here arises from UF's own May 7, 2026 extraction on this record alone.

Lawful output

Art. I, s. 24(a), Fla. Const., presumes public records open and puts the burden of any exemption on the custodian. Section 119.07(1)(a), Fla. Stat., requires the custodian to permit inspection of the non-exempt records its search located, and s. 119.07(1)(e) requires the statutory basis for any exemption claimed.

Four motions in one day; two quote Husband's filing reordered and cut short

Deviation

Wife's counsel filed four motions against Husband in one day. The two about the children quote Husband's May 16, 2024 filing with its words reordered and its stated cause cut off, and the guardian ad litem motion names no incident, date, or witness involving either child (Doc. 69 at 1-3; Doc. 77 at 1-2; Doc. 22 at 4).

Expected output

A lawyer who puts quotation marks around an opposing party's filing reproduces the words in their order and keeps any clause that changes their meaning. Rule 4-3.3(a)(1) bars a lawyer from knowingly making a false statement of fact to a tribunal, and a quotation is a statement of fact about what the quoted document says. Counsel had to quote paragraphs 21 and 26 of Doc. 22 as written and plead a fact about the children.

Verified facts and law

- **Dec. 13, 2024:** Motion to compel 7:31 a.m. (Doc. 67 at 1); default 8:32 a.m. (Doc. 75 at 1); guardian ad litem 11:12 a.m. (Doc. 69 at 1); psychological examination 1:45 p.m. (Doc. 77 at 1).
- **Doc. 69 and Doc. 77 against Doc. 22:** Doc. 69 para. 6a, repeated in Doc. 77, quotes Husband as having "severe mental, physical, and emotional conditions..." (Doc. 69 at 2). Doc. 22 para. 21 reads: "unable to work due to severe physical, mental and emotional conditions related to these marital and other recent issues." (Doc. 22 at 4). Both motions quote para. 26 as "certainly in part out of anger and frustration..." and stop (Doc. 69 at 2; Doc. 77 at 2). Para. 26 continues: "but primarily in hopes that Petitioner would simply provide the requested bank statements." (Doc. 22 at 4).
- **Jan. 6 to 7, 2025:** Counsel's Jan. 6 email concerned both parents attending one children's event that weekend (Doc. 121 at 5-6). Husband answered on Jan. 7: "I've asked you numerous times about the basis for changing from 50/50 custody to [Wife] filing for primary custody. You've raised zero concerns with me." (Doc. 121 at 3).
- **Jan. 21, 2025 and June 25, 2026:** Counsel dropped the default: "I filed a motion for default, but then Mr. Hanson filed an answer. So I am not pursuing that." (Doc. 118, Tr. 9:14-16). Doc. 69 was granted eighteen months after filing; the order makes no finding on Husband's fitness (Doc. 337 at 1).

Independent encounter

Scott Paul Davis signed all four motions for Wife, the movant on each. One lawyer, one day, four filings, one document quoted. Each duty here arises from those pages set beside the paragraphs they quote, on this record alone.

Lawful output

Art. I, s. 9, Fla. Const. guarantees due process. Section 61.13(2)(c)1., Fla. Stat., presumes equal time-sharing is in the children's best interest, and Doc. 69 para. 5 acknowledges it (Doc. 69 at 1); Wife carries the burden to rebut it. Section 61.401 requires a best-interest finding for a guardian ad litem. Rules 4-3.3(a)(1) and 4-3.1 bind the lawyer who quotes.